



REQUEST FOR PROPOSAL (RFP)

TITLE: ITEM MASTER MANAGEMENT AND TRADING PARTNER INTEGRATION FOR ORACLE FUSION

RFP NUMBER: UH-P26-008

DATE ISSUED: MAY 11, 2026

DATE QUESTIONS DUE: MAY 28, 2026, by 12:00 PM (Noon)

DUE DATE: JUNE 23, 2026, By: 2:00 PM

LOCATION: UNIVERSITY HOSPITAL
DEPARTMENT OF PURCHASING SERVICES
Hand Delivery: 65 Bergen Street, GB130
Newark, New Jersey 07103
Delivery by UPS/FEDEX/DHL etc: 191 S. Orange Ave
Newark, New Jersey 07103

Important Note: Bidders should check Section 1.3 of this document to verify if attendance at a mandatory event (e.g., pre-bid conference, site visit, etc.) is required for this procurement. Failure to attend a mandatory event will result in the rejection of your proposal.

In accordance with the requirements of this proposal, the undersigned offers and agrees, if their proposal is accepted, to furnish any and all services for which the prices are submitted in accordance with the attached conditions as specified in this proposal.

BIDDER NAME: _____

BIDDER REPRESENTATIVE:

ADDRESS: _____

NAME: _____

TITLE: _____

PHONE NO.: _____

EMAIL: _____

FAX NO.: _____

FED. TAX ID: _____

BIDDER'S AUTHORIZED SIGNATURE

**PREVENTING DISQUALIFICATION WHEN BIDDING ON RFP # UH-P26-008 for
“ITEM MASTER MANAGEMENT AND TRADING PARTNER INTEGRATION FOR
ORACLE FUSION”**

A) This is a public sector RFP, the underlying premise of which is a “level playing field” for fair competition among all participating bidders. Public sector rules and requirements may differ significantly from those in the private sector. UH evaluators and Purchasing Services, as well as bidders, must meet certain requirements in order for an award to be issued. Some examples:

- 1) Ensure your bid proposal is complete and includes all required documents. See RFP Sections 1.0, 3.0, 5.0, 8.0, and 9.0. Note regarding section 9.0: make any objections to insurance requirements known immediately, **before bid opening**.
- 2) If your bid proposal takes exception to UH payment terms (45 days), your proposal likely will be determined to be non-responsive. UH may accept shorter payment terms with additional discounts (e.g., 2%/30 days).
- 3) **Sign** and submit your bid proposal in a sealed package.
- 4) Identify your bid package as stated in the RFP to help avoid loss or accidental opening.
- 5) Submit your bid proposal to Purchasing Services by the prescribed opening time and date. Any late bids will be disqualified. Purchasing Services is not responsible for any bids that arrive late. Suggestion: send your bid in time for delivery to Purchasing Services a day or two earlier than specified in the RFP and track your shipment.
- 6) Initial handwritten changes, if any, prior to sealing and submitting your bid.
- 7) Other than procedural questions (e.g. directions to Newark) all questions must be posed using the protocol established in the RFP. Under the level playing field premise, all potential bidders must be made aware of any relevant information given to any bidder.

B) **Forms** – Problems (e.g. missing, incomplete) with forms are a primary cause of bid rejection. Determine in advance whether you have all necessary forms. Obtain any missing forms. Review to ensure you have all necessary forms, complete all of the forms and submit them with your proposal. RFP **Section 9.0** describes requirements, but some problem areas are:

- 1) The New Jersey State Business Registration – it does not have to be submitted with the bid, **but the bidder MUST have registered with the state of New Jersey BEFORE any contract can be awarded.** Registration often takes some time. If you are not registered, start the process immediately!
- 2) Ownership Disclosure Form – The bidder must complete the attached Ownership Disclosure Form and **sign the form**. A complete Ownership Disclosure Form must be received prior to, or accompanying, the bid. Failure to submit completed and signed document will preclude the award of a contract.
- 3) The Affirmative Action (AA) Certificate – Previously the AA 302 form, which provides racial and ethnic hiring and working statistics, was the only AA document required to be submitted with a bid proposal. Currently AA requires the AA 302 Form and certification of its submission to the state of New Jersey. Certification requires a \$150.00 fee to the state. Without certification you may be disqualified, but you will not be eligible for award until UH receives evidence that the certification has been granted by the state. Links to AA to obtain certification are in Section 9.0 of the RFP.
- 4) Business Associates Agreement - Any deviation from UH Business Associate Agreement **may** be accepted but because of the process including legal review, any potential award will be delayed significantly.
- 5) MacBride Principles Certification – The Bidder must certify, pursuant to N.J.S.A. 52:34-12.2, compliance with a). the MacBride principles of nondiscrimination in employment as set forth in N.J.S.A. 52:18A-89.5, b). the United Kingdom’s Fair Employment (Northern Ireland) Act of 1989, and c). the

bidder must permit independent monitoring of their compliance with those principles A bidder/offeror electing not to certify to the MacBride Principles must nonetheless sign the RFP Signatory Page AND must include, as part of its proposal, a statement indicating its refusal to comply with the provisions of this Act.

By signing the RFP Signatory Page, the bidder/offeror certifies that either:

- a. The bidder has no operations in Northern Ireland; or
 - b. The bidder has business operations in Northern Ireland and is committed to compliance with the MacBride principles.
- 7) Disclosure of Investment Activities in Iran Form – Pursuant to N.J.S.A. 52:32-58, the Bidder must submit the Disclosure of Investment Activities in Iran form to certify that neither the Bidder, nor one of its parents, subsidiaries, and/or affiliates (as defined in N.J.S.A. 52:32-56(e)(3)), is listed on the Department of the Treasury’s List of Persons or Entities Engaging in Prohibited Investment Activities in Iran and that neither the Bidder, nor one of its parents, subsidiaries, and/or affiliates, is involved in any of the investment activities set forth in N.J.S.A. 52:32-56(f). If the Bidder is unable to so certify, the Bidder shall provide a detailed and precise description of such activities as directed on the form. A Bidder’s failure to submit the completed and signed form will preclude the award of a contract to Bidder.
- 8) The Bidder should submit the Disclosure of Prohibited Activities in Russia / Belarus Form. Pursuant to P.L.2022, c. 3, a person or entity seeking to enter into or renew a contract for the provision of goods or services shall certify that it is not Engaging in Prohibited Activities in Russia or Belarus as defined by P.L.2002, c. 3, sec. 1(e). If the Contractor is unable to so certify, the Contractor shall provide a detailed and precise description of such activities.
- C) **Exceptions** – Exceptions to the RFP specifications are the most serious form of non-compliance/non-responsiveness. Material exceptions have one cure – withdrawal of the exception by the bidder. Evaluators will look at all exceptions to see if any may be determined to be non-material deviations which would give no advantage to the bidder. Usually, exceptions give advantage to the bidder over its competitors and without withdrawal the bidder will ultimately be disqualified.

REVIEW:

- 1) Read and understand the entire RFP.
- 2) Follow instructions as presented above and in the following sections of the RFP.
- 3) **Sign everything that requires signing.**
- 4) Enclose all required documents and forms in your bid package.
- 5) Label the bid package correctly.
- 6) Submit the bid package ahead of time.
- 7) Take no exceptions.

1. INFORMATION FOR BIDDERS

1.1. Purpose and Intent of the Procurement

1.1.1. Purpose

This Request for Proposal (RFP) is issued by the University Hospital (UH), Department of Purchasing Services on behalf of the University Hospital, Department of Information Services and Technologies.

UH is soliciting responses for a strategic partner to provide Healthcare Supply Chain Data Management and Trading Partner Integration services in support of the Oracle Fusion platform (hereinafter referred to as the “Partner”).

Partner services include item master data cleansing and enrichment, ongoing data stewardship, trading partner connectivity, EDI/VAN services, and integration with Oracle Fusion Supply Chain Management. The selected Partner will support the establishment of sustainable data governance processes, enable efficient trading partner transactions, and provide ongoing operational support to maintain accurate and reliable supply chain data.

UH has evaluated enterprise resource planning solutions and has selected Oracle Fusion Cloud as the organization’s ERP platform. Through this RFP, UH seeks to engage a qualified partner to support the optimization of supply chain data, ensure accurate item master management, and facilitate seamless integration with trading partners through modern EDI and connectivity services.

UH’s vision is to optimize operational performance and elevate patient care by strengthening supply chain data integrity, enabling data-driven decision-making, creating operational efficiencies, and empowering our workforce to meet current and future needs through the Oracle Fusion Cloud platform.

UH is committed to leveraging modern technologies and best practices to transform its supply chain operations and business processes. By implementing a robust supply chain data management and trading partner integration framework within the Oracle environment, UH intends to address the following opportunities:

- Establish a trusted and standardized enterprise item master through data cleansing, enrichment, and governance
- Enable efficient and automated trading partner connectivity through modern EDI/VAN services
- Improve data transparency and reporting to support operational and financial decision-making
- Streamline procurement, inventory, and supply chain workflows across the organization
- Enhance supply chain planning, inventory visibility, and product traceability to support clinical and patient care needs
- Ensure consistent and standardized business processes supported by reliable data governance
- Reduce inefficiencies and manual workarounds related to item maintenance and supplier transactions
- Improve contract, pricing, and supplier data alignment across procurement and accounts payable workflows
- Provide timely and accurate supply chain data to support cost management and operational insights
- These capabilities will enable UH to focus more effectively on patient care while establishing performance accountability driven by trusted data. The selected Partner will support UH in building a scalable and sustainable supply chain data environment that integrates seamlessly with Oracle Fusion, strengthens supplier connectivity, and supports future organizational growth and innovation.

1.1.2. Intent

It is UH’s intent to award this contract to a single firm that will partner with UH to establish and maintain a comprehensive item master data management and trading partner integration capability in support of the Oracle Fusion

Supply Chain platform, as outlined in Section 3, Scope of Work of this RFP. The selected awardee must be capable of transforming the existing data into a cleansed, standardized format suitable for seamless integration into Oracle Fusion and EPIC. Additionally, the Contractor will be responsible for maintaining accurate and up-to-date data to support daily electronic data interchange (EDI) transactions and ensure precise reporting, thereby minimizing exceptions.

UH has identified strategic intents and program objectives to guide the transformation of its supply chain data management capabilities and supplier connectivity framework. Vendors should consider the following objectives and describe how their services will support UH in achieving these goals.

- Transition to a highly integrated and aligned health system supported by a trusted, enterprise-wide item master and standardized supply chain data governance
- Establish a single, reliable source of truth for item master data across procurement, inventory, and clinical supply chain operations
- Improve data quality, standardization, and transparency to support operational efficiency and informed decision-making
- Enable efficient and scalable trading partner connectivity through modern EDI and integration services
- Reduce manual processes and data inconsistencies associated with item maintenance and supplier transactions
- Strengthen supply chain operations by ensuring accurate product, pricing, and supplier data across systems and workflow.

As part of this engagement, the vendor must assist UH in enriching the item master dictionary with critical data elements required by Oracle Fusion. These include, but are not limited to: manufacturer name, manufacturer catalog number (currently, UH primarily uses distributor catalog numbers), GTIN, HCPCS, UNSPSC, charge codes, expended descriptions, unit of measure/packaging strings, item categories, and implement types. This information must be appended to the item master prior to migration.

1.2. Background

University Hospital (UH) was separated from University of Medicine and Dentistry of New Jersey (UMDNJ), its parent organization for 31 years, by legislation that took effect in July 2013. UH is now an independent medical center and an instrumentality of the State of New Jersey. It is a principal teaching hospital of Rutgers Biomedical and Health Sciences (RBHS), which includes Rutgers New Jersey Medical School and Rutgers School of Dental Medicine.

UH is a critical statewide resource for clinical care, medical education and research; a key component of New Jersey's healthcare landscape; and important to federal, state and local legislators and other policymakers interested in advancing scientific discoveries and healthcare delivery. It is New Jersey's leading public hospital and provides training to more future physicians than any other hospital in the state.

UH is a 519 licensed bed acute-care hospital, home to regional and statewide resources for advanced care in many medical specialties. Additional information about UH is available on our website at: <http://www.uhnj.org/about/>.

Project Background

Historically, UH's legacy ERP environment, combined with multiple bolt-on applications supporting supply chain, clinical, and financial operations, resulted in the absence of a single, consolidated enterprise item master. Item data was maintained across multiple systems and workflows, often with inconsistent naming conventions, incomplete attributes, and varying units of measure. This fragmented approach limited the organization's ability to fully leverage supply chain data to support procurement, inventory management, clinical workflows, and financial reporting at the scale expected of a leading academic medical center.

As UH expanded its enterprise use of Epic, including the implementation of the Resolute revenue cycle module, the need for a unified and highly reliable item master became increasingly evident. Accurate item master data particularly standardized product descriptions, manufacturer identifiers, and properly aligned units of measure for both ordering and issuing became critical to supporting downstream clinical, operational, and financial processes. These include supply chain procurement workflows, inventory and point-of-use management, charge capture, and cost accounting.

To address these challenges, UH engaged a third-party partner to initiate a comprehensive item master cleansing and enrichment effort. This initiative focused on standardizing item descriptions, validating manufacturer and product identifiers, aligning ordering and issuing units of measure, and removing duplicates and inactive items. As a result of this effort, UH has successfully cleansed and standardized more than 24,000 active items, which are currently in use across the organization.

While this work has established a strong foundation, UH recognizes the need to further expand and mature its item master data management capabilities as part of its transition to Oracle Fusion Supply Chain Management. The next phase of this initiative will focus on two aspects first and foremost strengthening data governance, enhancing integration with enterprise systems and trading partners, and further enriching item attributes to support both operational and clinical use cases. The second to ensure that the maturation includes enabling electronic integration with suppliers and distributors to facilitate automated purchase orders, order acknowledgments, advanced shipment notices (ASNs), invoices, and catalog updates through modern EDI and integration services. Strengthening trading partner connectivity will reduce manual intervention in purchasing processes, improve transaction accuracy and visibility, and accelerate the flow of supply chain information between UH and its supplier community.

Through this initiative, UH aims to establish a sustainable, enterprise-grade item master that serves as a trusted source of supply chain data across the organization, enabling more efficient operations, improved reporting and analytics, and stronger alignment between clinical, operational, and financial systems.

1.3. Key Events

1.3.1. Questions and Inquiries

It is the policy of UH to accept questions and inquiries from all potential bidders receiving this RFP.

Written questions should be e-mailed to UH, Purchasing Services to the attention of the assigned buyer at the following address:

UH, DEPARTMENT OF PURCHASING SERVICES
ATTN: Jennifer Eliopoulos
Buyer's Email: eliopoje@uhnj.org

1.3.1.1. Cut-Off Date for Questions and Inquiries

A non-mandatory Pre-bid Conference will **NOT** be required for this procurement. Written questions must be delivered to the Department of Purchasing Services via e-mail at: uhpurchasing@uhnj.org and eliopoje@uhnj.org. It is requested that bidders having long, complex or multiple part questions submit them in writing as far in advance as possible. This request is made so that answers can be prepared in a timely manner for the addendum. Questions should be posed in consecutive order, from beginning to end, following the organization of the RFP. Each question should begin by referencing the RFP page number and section number to which it relates.

Questions should be submitted in the following format:

Page #	Section #	Question
5	1.1	What do you mean by...?

Short procedural inquiries may be accepted by telephone by the buyer; however, oral explanations or instructions given over the telephone shall not be binding upon the University Hospital. Bidders shall not contact any person within the University Hospital directly, in person, or by telephone, other than the assigned buyer, concerning this RFP.

Cut-off date for questions and inquiries relating to this RFP is: MAY 28, 2026 BY 12:00 PM (Noon).

It is the responsibility of the bidder to identify and address any additional requirements or information needed to submit a proposal. No special consideration shall be given to any bidder, because of the bidder's failure to be knowledgeable of all the requirements of the proposal after the cut-off date for questions.

IMPORTANT NOTE: NO QUESTIONS OR INQUIRIES REGARDING THE SUBSTANCE OF THE RFP WILL BE ACCEPTED OR ANSWERED AFTER THE CUT OFF DATE. ALL QUESTIONS MUST BE SUBMITTED IN ACCORDANCE WITH RFP SECTION 1.3.1.

1.4. Additional Information for Bidders

1.4.1. Revisions to this RFP

In the event that it becomes necessary to clarify or revise this RFP, such clarification or revision will be by addendum. Any RFP addendum will be distributed as follows:

The cut-off date for questions and inquiries concerning the RFP is stated in Section 1.3.1.1. If any addendum is issued for this procurement, it will be distributed to all bidders who were sent the RFP and will be posted on the UH Bidding Opportunities webpage, which can be found here:
https://uhnj.org/purchweb/vendors/vendor_current_bid.htm

1.4.2. Addendum as a Part of this RFP

Any addendum to this RFP shall become part of this RFP and part of any contract resulting from this RFP. **Notice to Bidders:** It is the responsibility of all potential bidders to check UH's web site www.uhnj.org/purchweb/ regularly and obtain all addenda that may be issued to bid specifications. UH is not responsible for direct distribution of addenda posted on the web site to all vendors who desire to submit a proposal.

1.4.3. Issuing Office

This RFP is issued by UH, Department of Purchasing Services. The buyer noted in Section 1.3.1 is the sole point of contact between the bidder and UH for purposes of this RFP.

1.4.4. Bidder Responsibility

The bidder assumes sole responsibility for the complete effort required in this RFP. No special consideration shall be given after bids are opened because of a bidder's failure to be knowledgeable of all the requirements of this RFP. By submitting a proposal in response to this RFP, the bidder represents that it has satisfied itself, from its own investigation, of all the requirements of this RFP.

1.4.5. Cost Liability

UH assumes no responsibility and bears no liability for costs incurred by bidders in the preparation and submittal of proposals in response to this RFP.

1.4.6. Contents of Bid Proposal

All information submitted by bidders in response to a bid solicitation is considered public information, except as may be exempted from disclosure by the Open Public Records Act, N.J.S.A. 47:1A-1 et seq., and the common law. As such, all bid proposals are generally available for public inspection after contract award.

If a bidder believes that information contained in a submission should be exempt from public disclosure, the bidder should designate the information as such for the Hospital's consideration. UH reserves the right to make the final determination and will advise the bidder accordingly.

In the event of a challenge to the bidder's designation of confidential/proprietary materials, the bidder shall have sole responsibility for defending its designation and UH shall have no responsibility, therefore.

1.4.7. Price Alterations

Bid prices must be typed or written in ink. Any price changes (including "white-outs") must be initialed. Failure to initial price changes may preclude an award being made to the bidder.

1.4.8. Joint Venture

If a joint venture is submitting a bid, the agreement between the parties relating to such joint venture should be submitted with the joint venture's proposal. Authorized signatories from each party comprising the joint venture must sign the bid proposal. A separate Ownership Disclosure Form, Affirmative Action Employee Information Report, MacBride Principles Certification, Disclosure of Investment Activities in Iran Form, Certification Regarding Prohibited Activities in Russia or Belarus, and, if applicable, foreign (out of State) corporate registration must be supplied for each party to the joint venture.

1.4.9. Diverse and Local Contracting

University Hospital seeks to encourage and afford opportunities to diverse and local suppliers, while ensuring that it receives the highest quality products and services at the most economical costs. University Hospital also encourages all Contractors to subcontract with small, diverse and/or local firms when feasible. Any bidder intending to subcontract with such firms should submit a plan for fulfilling this objective using the attached Diversity Subcontractor Utilization Plan. Upon contract award, any Contractor that submitted such Plan shall be required to report all payments made to small, diverse and/or local business subcontractors to UH's Office of Supplier Diversity and Vendor Development using the attached Diversity Subcontractor Utilization Report.

1.4.10. Bid Bond

Not applicable under this RFP.

1.4.11. HIPAA Compliance

This agreement involves the access to Protected Health Information. Thus, the willing bidder will be required to complete a Business Associate Agreement, consistent with the requirements of the Health Insurance Portability and Accountability Act of 1996, the Health Information Technology for Economic and Clinical Health Act (Title XIII of the American Recovery and Reinvestment Act of 2009) ("HITECH"), the Health Information Electronic Data Interchange Technology Law (HINT), and associated federal rules and regulations. This requirement is a precondition of entering into a valid and binding contract. Further, the Contractor agrees that throughout the term of its agreement with University Hospital, the Contractor shall be in full compliance with these laws and the regulations implementing them, and that all requirements set forth in the regulations are deemed incorporated as material terms of its agreement with University Hospital as if fully set forth herein.

1.4.12. Business Registration Notice

All New Jersey and out of State business organizations must obtain a Business Registration Certificate (BRC) from the Department of the Treasury, Division of Revenue, prior to conducting business with the State of New Jersey. This requirement extends to all named subcontractors. Proof of bidder's and subcontractors' valid business registration should be submitted by a bidder with its bid proposal. The business registration form (Form NJ-REG) can be found online at: <http://www.state.nj.us/treasury/revenue/busregcert.shtml>

1.4.12.1. Definitions

For the purpose of the section, the following definitions shall apply:

“Affiliate” means any entity that (1) directly, indirectly, or constructively controls another entity, (2) is directly, indirectly, or constructively controlled by another entity, or (3) is subject to the control of a common entity. An entity controls another entity if it owns, directly or individually, more than 50% of the ownership in that entity.

“Business organization” means an individual, partnership, association, joint stock company, trust, corporation, or other legal business entity or successor thereof.

“Business registration” means a business registration certificate issued by the Department of the Treasury or such other form or verification that a contractor or subcontractor is registered with the Department of Treasury.

“Contractor” means a business organization that seeks to enter, or has entered into, a contract to provide goods or services with a contracting agency.

“Contracting agency” means the principal departments in the Executive Branch of the State Government, and any division, board, bureau, office, commission or other instrumentality within or created by such department, or any independent State authority, commission, instrumentality or agency, or any State college or University Hospital, any county college, or any local unit.

“Subcontractor” means any business organization that is not a contractor that knowingly provides goods or performs services for a contractor or another subcontractor in the fulfillment of a contract.

1.4.12.2. Requirements Regarding Business Registration Form

A contractor should submit a copy of its business registration at the time of submission of its bid proposal in response to this RFP.

A subcontractor shall provide a copy of its business registration to any contractor who shall forward it to the contracting agency. No contract with a subcontractor shall be entered into by any contractor unless the subcontractor first provides proof of valid business registrations.

The contractor shall provide written notice to all subcontractors that they are required to submit a copy of their business registration to the contractor. The contractor shall maintain a list of the names of any subcontractors and their current addresses, updated as necessary during the course of the contract performance. The contractor shall submit to the contracting agency a copy of the list of subcontractors, updated as necessary during the course of performance of the contract. The contractor shall submit a complete and accurate list of the subcontractors to the contracting agency before a request for final payment is made to the using agency.

The contractor and any subcontractor providing goods or performing services under the contract, and each of their affiliates, shall, during the term of the contract, collect and remit to the Executive Director of the Division of Taxation in the Department of Treasury the use tax due pursuant to the “Sales and Use Tax Act, P.L. 1966, c. 30 (N.J.S.A. 54:32B-1 et seq.) on all their sales of tangible personal property delivered into the State.

1.4.13. Deficit Reduction Act

University Hospital is committed to the prevention and detection of any fraud, waste, and abuse within University Hospital related to all health care programs, including Federal and State programs.

To this end, UH maintains a vigorous compliance program geared in part to educating our community on the range of fraud and abuse laws, including the importance of submitting accurate claims and reports to the Federal and State governments. Our policies prohibit the knowing submission of a false claim for payment in relation to any health care program, including a Federal or State funded health care program. Such a submission is a violation of Federal and State law and can result in significant administrative and civil penalties under the Federal and State False Claims Acts.

To assist UH in meeting its legal and ethical obligations, any employee, contractor or agent who is aware of the preparation or submission of a false claim or report or reasonably suspects any other potential fraud, waste, or abuse in relation to a Federal or State funded health care program is required to report such information to his or her supervisor and UH's Office of Ethics and Compliance. Any employee of UH who in good faith reports such information will be protected against retaliation for coming forward with such information both under UH's internal compliance policies and procedures and United States and New Jersey law.

As an organization, UH obligates itself to investigate any such information swiftly and thoroughly through its internal compliance programs and mechanisms. Nonetheless, if an employee, contractor or agent believes that the organization's response is deficient and unresponsive, the employee shall bring these concerns to UH's Office of Ethics and Compliance. If such follow-up still does not trigger an investigation, after a reasonable period of time, the employee, contractor or agent has the ability to bring his/her concerns to the appropriate government agency under the relevant Federal and/or State laws.

This information shall be provided to all UH employees and all contractors and agents of UH.

2. DEFINITIONS

2.1. The following definitions shall be part of any contract awarded or order placed as a result of this RFP:

“Addendum” – Written clarification or revision to this RFP issued by UH, Purchasing Services.

“Amendment” – A change in scope of work to be performed by the contractor. An amendment is not effective until it is signed by the Executive Director of Supply Chain Management or Chief Financial Officer.

“Bidder” – An individual or business entity submitting a bid in response to this RFP.

“CFO” – University Hospital, Chief Financial Officer.

“CEO” – University Hospital, Chief Executive Officer.

“CHRO” – University Hospital, Chief Human Resources Officer.

“Complete” – This refers to any document that requires to be filled and must be signed.

“Contract” – This RFP, any addendum to this RFP, and the bidder’s proposal submitted in response to this RFP and UH’s Contract Term Sheet.

“Contractor” – The contractor is the bidder awarded a contract.

“Evaluation Committee” – A committee established to review and evaluate bid proposals submitted in response to this RFP and to recommend a contract award to the Executive Director of Supply Chain Management.

“Executive Director” – The Executive Director of Supply Chain Management; the contracting officer for UH.

“HIPAA or HITECH Act” – Health Insurance Portability and Accountability Act of 1996, 1996 (“HIPAA”), the Health Information Technology for Economic and Clinical Health Act (Title XIII of the American Recovery and Reinvestment Act of 2009) (the “HITECH Act”), and regulations promulgated by the U.S. Department of Health and Human Services (the “HHS”) (hereinafter the “HIPAA Regulations” and the “HITECH Regulations,” respectively) and/or applicable state and/or local laws and regulations..

“Loaded Hourly Rates” - All-inclusive rates for each project requested.

“May” – Denotes that which is permissible, not mandatory.

“President” – University Hospital, President.

“Project” – The undertaking of services that are the subject of this RFP.

“Request for Proposal (RFP)” – This document, which establishes the bidding and contract requirements and solicits proposals to meet the purchase needs as identified herein.

“Shall” or “Must” or “Will”– Denotes that which is a mandatory requirement. Failure to meet a mandatory requirement will result in the rejection of a bid proposal as materially non-responsive.

“Should” – Denotes that which is recommended, not mandatory.

“Subtasks” – Detailed activities that comprise the actual performance of a task.

“Task” – A discrete unit of work to be performed.

“UH” – University Hospital, Newark, New Jersey.

2.2. Definition specific to this RFP:

“Acceptance Criteria” – Denotes the conditions under which the Item Master Management and Trading Partner Integration for Oracle Fusion system will be deemed ready for deployment and final acceptance by UH.

“Business Process Reengineering (BPR)” – Denotes the process of analyzing and redesigning business processes to improve efficiency, often as part of the Item Master Management and Trading Partner Integration for Oracle Fusion system implementation.

“Change Management” – Denotes the process of managing the human side of the Item Master Management and Trading Partner Integration for Oracle Fusion system implementation, including communication, training, and support to help users transition to the new system.

“Configuration” – Denotes the process of setting up the Item Master Management and Trading Partner Integration for Oracle Fusion system using its built-in functionality and features to align with business processes.

“Customization” – Denotes changes made to the Item Master Management and Trading Partner Integration for Oracle Fusion system to meet the specific business requirements of UH, beyond the standard configuration at a minimum if any.

“Go-Live” – Denotes the date when the Item Master Management and Trading Partner Integration for Oracle Fusion is fully operational and in use within UH.

“Integration” – Denotes the process of connecting the Item Master Management and Trading Partner Integration for Oracle Fusion with existing software or systems and 3rd party suppliers.

“Optical Character Recognition (OCR)” – Denotes the technology used to digitize and automate the capture and processing of data from physical documents.

“Project Timeline and Milestones” – Denotes the detailed schedule and key milestones for the implementation project, including dates for completion of phases like planning, design, testing, and go-live.

“Post-Implementation Review” – Denotes the process of evaluating the success of the Item Master Management and Trading Partner Integration for Oracle Fusion implementation after go-live to assess if the system meets the defined goals and objectives.

“Risk Management” – Denotes the process of identifying, assessing, and mitigating potential risks during the Item Master Management and Trading Partner Integration for Oracle Fusion implementation.

“SCM” – Supply Chain Management which refers to the processes, systems, and activities involved in procuring, managing, storing, and distributing supplies and equipment needed to support patient care and hospital operations.

“Service Level Agreement (SLA)” – Denotes the agreement that specifies the vendor’s commitments regarding system uptime, support response times, and other operational metrics.

“Support and Maintenance” – Denotes the post-implementation services provided by the vendor, including system updates, bug fixes, troubleshooting, and user support.

“Testing Phase”- Denotes the different stages of testing (e.g., unit testing, integration testing, system testing, UAT) during the implementation process.

“Training” – Denotes the instructional programs for end-users to familiarize them with the Item Master Management and Trading Partner Integration for Oracle Fusion and its functionalities.

“User Acceptance Testing (UAT)” – Denotes the phase in the implementation process where end-users validate that the system meets business requirements and is ready for deployment.

3. SCOPE OF WORK

Beneath each specification is a line stating: WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTIONS. The bidder must indicate by putting a check mark in the appropriate box marked ____ Y (Yes) ____ N (No).

If any requirements cannot be fulfilled the bidder must explain why on a separate sheet identifying the Section # and Name in Section 7 of the RFP.

The bidder must recognize that the inability to fulfill a required specification may possibly result in the proposal being deemed non-responsive and thereby disqualify the proposal from evaluation.

3.1. Program Objectives

3.1.1. Establish a trusted enterprise item master by standardizing, cleansing, and governing supply chain data across the organization.

3.1.2. Create a single source of truth for supply chain data that supports procurement, inventory management, clinical operations, and financial reporting.

3.1.3. Improve data quality and consistency through automated validation, enrichment, and governance processes for item, supplier, and pricing data.

3.1.4. Enable seamless trading partner connectivity with suppliers and distributors through EDI and modern integration technologies. This includes integration of external feeds that support and enhances EDI transactions, such as supplier catalog updates, pricing files and contract data.

3.1.5. Automate purchasing transactions including purchase orders, order acknowledgements, shipment notifications, price file maintenance and invoices to reduce manual intervention.

3.1.6. Contractor shall enrich item master data with standardized attributes including but not limited to: manufacturer name, manufacturer catalog number, GTIN, UNSPSC, HCPCS (where applicable), charge codes, unit of measure/packaging hierarchy, item category, and implant classification.

3.1.7. Contractor shall ensure that external data feeds are fully integrated with and support EDI and trading partner transactions, including purchase orders, order acknowledgments, advanced shipment notices (ASNs), invoices, and catalog updates, to improve transaction accuracy and reduce manual intervention.

3.1.8. Improve supply chain efficiency and visibility by enabling real-time data exchange between the hospital and its supplier community.

3.1.9. Support clinical operations through accurate product data, standardized units of measure, and clinically meaningful item descriptions.

3.1.10. Strengthening contract and pricing alignment to ensure procurement transactions reflect negotiated supplier and GPO agreements.

3.1.11. Reduce operational risk by improving product traceability, recall management, and regulatory compliance through standardized product identifiers.

3.1.12. Enhance analytics and reporting capabilities by providing reliable supply chain data to support operational, financial, and strategic decision-making.

3.1.13. Improve inventory planning and product availability to support patient care while minimizing stockouts and excess inventory.

3.1.14. Reduce administrative burden and manual workarounds associated with item maintenance, supplier transactions, and data reconciliation.

3.1.15. Enable scalable and interoperable integration with enterprise systems such as ERP, EHR, procurement platforms, and analytics environments.

3.1.16. Support long-term supply chain transformation by establishing sustainable governance processes and modern integration capabilities

3.1.17. Contractor shall provide qualified personnel with technical expertise to support, configure and implement the scope of this project. Scope includes the establishment and ongoing support of an enterprise Healthcare Supply Chain Data Management and Trading Partner Integration capability to support UH's Oracle Fusion Supply Chain environment. The selected Partner will be responsible for the continued cleansing, normalization, enrichment, and stewardship of UH's item master, ensuring accurate product attributes, standardized units of measure, manufacturer information, and clinically meaningful descriptions. In addition, the Partner will enable and manage electronic connectivity with UH's suppliers and distributors through EDI and modern integration services to support purchasing transactions such as purchase orders, order acknowledgments, shipment notifications, invoices, and catalog updates. The engagement will also include the implementation of sustainable data governance processes, system integrations with Oracle Fusion, and the ongoing operational support necessary to maintain accurate supply chain data and efficient trading partner connectivity across the organization.

3.1.18. Enable continuous ingestion, normalization, and synchronization of external data feeds, including but not limited to Group Purchasing Organization (GPO) data, manufacturer catalogs, distributor price files, and supplier-provided item and pricing updates, to ensure the item master remains current, accurate, and aligned with market changes.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.1.
___ Y (Yes) ___ N (No)

3.2. Organizational Change Management (OCM)

3.2.1. Change management is comprised of elements that, when successfully integrated, will lead to a more positive adoption of modern technology systems. As changes in workflows are identified, it is important to ensure those impacted workflows are appropriately woven into training, communications, policy & procedure development, and user adoption efforts, as applicable.

UH recognizes the importance of the end user experience in all technology-enabled transformations. As such, organizational change management and successful user adoption are an essential component of technology implementation services.

UH wants to embed end-user experience throughout the implementation and ensure how those end-users (physicians, nurses and nurse managers, administrators, and other UH employees) impacted are represented and considered as the modern technology impacts their workflows.

3.2.2. Contractor shall provide a detailed plan to establish stakeholder engagement, change readiness assessment, change and communication planning and training for OCM, which shall include:

- 3.2.2.1. Impact Assessment
- 3.2.2.2. Stakeholder Plan
- 3.2.2.3. Training Plan
- 3.2.2.4. Training Materials
- 3.2.2.5. Communication Plan
- 3.2.2.6. Updated Policies and Procedures
- 3.2.2.7. Adoption Plan
- 3.2.2.8. Readiness Checks
- 3.2.2.9. Timeline/Roadmap
- 3.2.2.10. Support plan

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.2.

☐ Y (Yes) ☐ N (No)

3.3. Implementation Scope

Provide UH with Testing/Acceptance Plan. The SI must test all configuration, modifications, interfaces, and data conversion prior to turning over to the UH for testing. The SI shall provide the following:

- 3.3.1. System Test Plan
- 3.3.2. User Acceptance Test Plan
- 3.3.3. Parallel test plan
- 3.3.4. Conversion test plan

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.3.

☐ Y (Yes) ☐ N (No)

3.4. Implementation Plan and Deliverables

3.4.1. The Contractor shall develop a comprehensive Implementation Plan and Schedule that outlines all tasks, milestones, and dependencies required for the successful deployment of the Item Master Management and Trading Partner Integration for Oracle Fusion system. The plan must reflect the logical sequencing of activities to ensure an efficient and effective rollout, maximizing operational readiness and minimizing disruption.

Key components must include but are not limited to:

- 3.4.1.1. Detailed project phases and workstreams
- 3.4.1.2. Task dependencies and critical path
- 3.4.1.3. Milestones and key decision points
- 3.4.1.4. Resource assignments and timelines
- 3.4.1.5. Integration points across Oracle SCM modules including Procurement Contracts
- 3.4.1.6. Risk mitigation steps and contingency planning

3.4.2. Develop and provide a testing methodology for system integration tests, end-to-end testing, mock conversion, non-functional testing, volume and performance tests, and security tests. This methodology must outline the testing approach, including the use of specific accelerators such as predefined test packages, test cases, and test scripts.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.4.

☐ Y (Yes) ☐ N (No)

3.5. Project Organization Criteria and Governance Structure

The project organization will comprise of a Core Project Team from UH and the Item Master Management and Trading Partner Integration for Oracle Fusion Project Team. The Contractor's Core Project Team shall be directed by Executive/Senior Leadership, who are expected to take an active role in steering the project, supported by coordinators for the various modules to be implemented. The attendees from the ERP Implementer in the core project meetings must be officials of senior management (typically main Project team and Stakeholders) who will be able to address decisions on pertinent points. UH will subsequently define the members of its Core Project Team.

Contractor must define the roles, responsibilities and deliverables during the implementation phase in a detailed work plan. The work plan must outline sequentially and describe the elements and activities that would be undertaken in completing the tasks; specify by name and job description, the role that would be assigned to perform said task; the hourly rate of each person; rate for task identified; and include a schedule for completing the tasks in terms of elapsed weeks from the commencement date. Include details regarding the timeline needed before system is capable of being "live" for use after contract execution.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.5.

☐ Y (Yes) ☐ N (No)

3.6. Data Migration, Ongoing Data Integration and External Data Integration

3.6.1. Contractor shall provide the data migration plan and will be responsible for all data migration activities. Contractor shall provide all the data master formats to ensure proper data migration. The data migration plan must include the following:

3.6.1.1. Knowing the data - Before migration, source data needs to undergo a complete audit to avoid unexpected issues.

3.6.1.2. Cleanup - Once issues are identified they must be resolved. This may require additional software tools and third-party resources because of the scale of the work.

3.6.1.3. Maintenance and protection - Data undergoes degradation after a period of time, making it unreliable. Controls must be in place to maintain data quality.

3.6.1.4. Governance - Tracking and reporting on data quality is important because it enables a better understanding of data integrity. The processes and tools used to produce this information should be highly usable and automate functions where possible.

3.6.2. Contractor shall establish, manage, and maintain automated processes for ingestion, validation, normalization, and synchronization of external data feeds, including but not limited to:

3.6.2.1. GPO data feeds (e.g. contract pricing, item attributes, etc.)

3.6.2.2. Manufacturer and distributor catalog files

3.6.2.3. Supplier provided price and product updates

3.6.2.4. Industry standard data sources (e.g. GTIN, UNSPSC updates)

3.6.3. Contractor shall ensure that data feeds are validated prior to integration into the item master.

3.6.4. Contractor shall ensure conflicts and discrepancies are flagged and resolved through defined workflows.

3.6.5. Contractor shall ensure updates are applied in a controlled and auditable manner

3.6.6. Contractor shall ensure data synchronization supports downstream systems including ERP, HER and procurement workflows.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.6.

☐ Y (Yes) ☐ N (No)

3.7. Testing

The contractor must conduct system testing of the solution with the Item Master Management and TPI for Oracle Fusion System, application, and any customized components. Testing shall include but not limited to the following (Implementation team may propose others, based on strategy and/or methodology).

3.7.1. Unit Testing

3.7.2. Performance/Volume testing

3.7.3. System integration testing

3.7.4. User acceptance testing

3.7.5. Testing based on functions and/or scripts

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.7.

☐ Y (Yes) ☐ N (No)

3.8. Training

3.8.1. The contractor shall deliver functional and technical training for business, IT staff and end users of the system solution including database, application software and transfer of knowledge.

3.8.2. Contractor shall provide formal training to UH end users through methods such as, but not limited to, on-site classes, Train-the-Trainers, webinars, FAQs, user guides and PowerPoint presentations to support pre- and post-launch use of the system.

3.8.3. Contractor will coordinate the training duration and environments with UH project implementation team at UH premises.

3.8.4. Contractor shall develop, set up and support the test environment required for the training before the training commences.

3.8.5. Contractor shall provide detailed training on the solution to UH leadership and the UH project team.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.8.

☐ Y (Yes) ☐ N (No)

3.9. Managing Go-Live

Contractor will provide a detailed plan which lists specific activities of go live events. The plan shall ensure that the core activities from hardware procurement, deployment, user acceptance testing (UAT) sign off, end user training and documentation are all completed before the go live event. Vendor must provide support during go-live, preferably on-site.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.9.

☐ Y (Yes) ☐ N (No)

3.10. Post Go-Live Support

3.10.1. Contractor shall provide immediate and timely support following the Go-Live event to confirm successful cut-over to production and provide prompt response and resolution of any production issues. Successful Respondent will provide prompt and effective support for the duration of this agreement to resolve all implementation, operational and production issues. User guides, training materials and systems specifications will also be converted to final release version during this stage. The post go-live support will address all user level queries, fixing bugs, incorporation of new requirements owing to legal, statutory and policy changes, changes to configurations, patch updates, upgrades, database administration, security, etc. For this purpose, the Contractor is expected to provide detailed processes to be followed for logging requests, assigning requests to specific individuals, recording resolution, tracking overall time taken for resolution, etc.

3.10.2. Contractor shall provide ongoing operational support for external data feed management, including continuous monitoring, maintenance, issue resolution, and optimization of data ingestion processes to ensure sustained alignment between UH's item master and supplier, GPO, and market data sources.

3.10.3. All costs associated with providing extended Technical Support Services must be included in the Pricing Worksheet.

3.10.4. Response Times - Contractor shall provide a "Response Time Schedule" indicating response times to service requests in accordance with their priority and/or critical level. Response time is defined as the period between the receipt of a service call from UH and the time until service technician responds with repair efforts underway and the return of the affected systems to normal operations. Response times shall include service levels for resolution of data feed failures, data discrepancies, and synchronization issues impacting procurement, inventory, or financial transactions.

3.10.5. Escalation Protocol - Contractor must propose for UH's consideration an escalation protocol for collaboratively resolving issues encountered during the term of any contract resulting from this RFP. The proposed escalation process protocol must explain how issues or complaints are prioritized and resolved.

3.10.5.1. This protocol shall include an organization chart addressing topics such as specific steps to be taken on top priority issues or disputes arising due to untimely response to system down or critical malfunction remedial repair requests.

3.10.5.2. Any other top priority service requirements of a contract resulting from this RFO which are not met.

3.10.6. Contractor shall provide ongoing monitoring and management of external data feeds to ensure continuous alignment of item master data with supplier, GPO and market updates.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.10.

☐ Y (Yes) ☐ N (No)

3.11. Project Completion Criteria and Acceptance of Deliverables

3.11.1. Contractor must meet all completion criteria, which are defined as follows:

3.11.1.1. Functional, integration, stress and user acceptance testing satisfactorily completed for all functionality to include, but not limited to production, testing and training environments.

3.11.1.2. Documentation of business processes, end-user procedures and an end-user training plan, production computer environment established and documented.

3.11.1.3. System interfaces completed and tested.

3.11.1.4. Data conversion process completed, tested, auditable and reconcilable to include Legacy data.

3.11.1.5. Technical system management procedures documented and in place.

3.11.1.6. Documentation of the system roll-out/go-live plan completed.

3.11.1.7. System go-live achieved and the system in production.

3.11.1.8. Transfer of knowledge to allow UH to independently maintain, administer and optimize the ERP system.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.11.

☐ Y (Yes) ☐ N (No)

3.12. KPI and SLA Metrics

3.12.1. Contractor shall meet or exceed the Key Performance Indicators (KPIs) and Service Level Agreements (SLAs) defined herein. Performance shall be measured on a monthly basis unless otherwise specified. Failure to meet defined thresholds may result in corrective action, service credits, or other remedies as determined by UH. Refer to Attachment 1.

3.12.2. Contractor shall provide monthly performance reports demonstrating compliance with all KPIs and SLAs. In the event performance falls below defined threshold of the following:

- Contractor shall submit a Corrective Action Plan (CAP) within five (5) business days
- Contractor shall implement remediation within a mutually agreed timeframe
- Repeated failures may result in service credits, escalation or contract remedies

3.12.3. Service Credits

UH reserves the right to apply service credits for failure to meet critical KPIs, including but not limited to:

- EDI transaction failure rates
- Data feed failures

- Critical Issue response/resolution breaches
- Item master accuracy below threshold

Service credits shall be calculated as a percentage of monthly fees, as defined in Attachment 1.

3.12.4. Continuous Improvements

Contractor shall proactively identify opportunities to improve data quality, automation, and operational efficiency. Recommendations shall be presented during quarterly business reviews and may include process enhancements, automation opportunities, and system optimizations.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.12

☐ Y (Yes) ☐ N (No)

3.13. UH Data Safeguard Standards

Contractor must adhere and accept UH's Data Safeguard Standards, Attachment 2.

WE HAVE READ AND SHALL FULFILL THE REQUIREMENTS OF SECTION 3.13.

☐ Y (Yes) ☐ N (No)

4. SPECIAL CONTRACTUAL TERMS AND CONDITIONS

4.1. Contract Term and Extension Option

4.1.1. Contract Term

The contract will be awarded for three (3) years commencing from the date of award. If delays in the bid process result in an adjustment of the anticipated contract effective date, the bidder agrees to accept a contract for the full term of the contract.

4.1.2. Contract Extension Option

This contract may be extended for all or part of two (2) years additional one-year periods. Any extension of this contract under this provision will be put into effect by mutual agreement between University Hospital and the Contractor, with written notification being provided to the Contractor by University Hospital. The original terms and conditions will remain in effect for any extension period. Unless otherwise noted in this RFP (or any Addendum thereto), pricing for each optional year is to remain the same as the final year of the original contract term.

4.2. Contract Transition

In the event services end by either contract expiration or termination, it shall be incumbent upon the Contractor to continue services, if requested by the Executive Director, until new services can be completely operational. The Contractor acknowledges its responsibility to cooperate fully with the replacement Contractor and UH to ensure a smooth and timely transition to the replacement Contractor. Such transitional period shall not extend more than one hundred and twenty (120) days beyond the expiration date of the contract, or any extension thereof. The Contractor will be reimbursed for services during the transitional period at the rate in effect when the transitional period clause is invoked by UH.

4.3. Precedence of University Hospital's Standard Terms and Conditions

The contract resulting from this procurement shall consist of the following documents:

- This RFP, which hereby incorporates UH's Standard Terms and Conditions
- Any addendum to this RFP
- The Contractor's Bid Proposal
- UH's Contract Term Sheet.

In the event of a conflict between the provisions of this RFP, including any addendum to this RFP, and the bidder's proposal, the RFP and/or the addendum shall govern.

4.4. Departure from Bid Specifications or Terms and Conditions

Notwithstanding the forgoing, a bidder's proposal may be deemed **NON-COMPLIANT AND BE REJECTED** and/or be found **non-responsive** if a change is a material departure from the bid specifications or the terms and conditions of this RFP. The determination of material departure shall be in the sole discretion of University Hospital.

4.5. Insurance

The Contractor shall assume all responsibility for its actions and those of anyone else working for it while engaged in any activity connected with this contract. The Contractor shall carry sufficient insurance to protect it and UH from any property damage or bodily injury claims arising out of the contracted work. Evidence of current insurance

coverage shall be provided in the form of a Certificate of Insurance, which shall be submitted no later than ten (10) days after receipt of notice of intent to award contract. The Certificate of Insurance should include the solicitation identification number and title of the solicitation. No contract will be issued to the successful bidder until such time as the Contractor has supplied UH with a Certificate of Insurance verifying the above-indicated coverage. The Contractor is not authorized to begin service until UH is in receipt of said certificate.

Liability insurance must remain in effect for the duration of the contract, including any extensions, and for ninety (90) days following termination of all work

In order to prevent any unnecessary delay, bidders may submit evidence of required insurance with their bid.

The insurance to be provided by the Contractor shall be as follows:

- **Commercial General Liability Insurance** - including contractual liability endorsement, subject to primary limits of coverage of not less than \$1,000,000 per occurrence/\$1,000,000 annual aggregate. If applicable, XCU coverage may be required;

- **Automobile Liability Insurance** – covering owned, non-owned and hired vehicles with not less than \$1,000,000 for bodily injury and property damage;

- **Excess Liability Insurance** - subject to an additional limit of liability of not less than \$1,000,000 per occurrence/\$1,000,000 aggregate excess of the primary policy;

- **Workers' Compensation Insurance** - statutory coverage and including employers' liability coverage of not less than \$1,000,000 per occurrence and \$1,000,000 annual aggregate;

- **Professional Liability insurance** including Technology Errors and Omissions, Privacy and Cyber-Risk (Network Security) Liability insurance, covering liabilities for financial loss resulting or arising from acts, errors or omissions in rendering Services in connection with this Agreement including acts, errors or omissions in rendering computer or information technology Services, copyright or trademark infringement, data damage/destruction/corruption, failure to protect privacy, unauthorized access, unauthorized use, virus transmission and denial of service from network security failures with a minimum limit of five million dollars (\$5,000,000) each claim and annual aggregate; and

- **Additional Insured** - UH to be named as additional insured ATIMA with respect to Commercial General, Automobile and Excess Liability Insurance provided by contractor pursuant to this proposal/contract;

- **Errors and Omissions Liability insurance** - with limits of \$2 million/\$2 million; UH to be named as additional insured ATIMA with respect to services provided by contractor pursuant to this proposal contract. If applicable, this insurance may be required.

- All insurers affording coverage are to be rated not less than A- by Bests Insurance Rating Service.

- **UH is to be named as certificate holder with respect to all afore-mentioned insurance coverages.**

- **All Insurance coverages shall remain in effect throughout the course of the contract. Contractor shall be responsible for any and all future claims, litigation, damages, liabilities, whatsoever, which may arise as a result of Contractor's performance of services pursuant to this contractual agreement.**

All required commercial general liability insurance and any required pollution liability insurance coverage shall be maintained throughout the course of the project. Failure to maintain said insurance coverage shall be deemed sufficient cause to immediately terminate the contract without having to show additional cause. **A Certificate of Insurance must be provided to UH Contract Administrator for each year of the contract award.**

Further, said liability insurance coverages shall be subject to an extended reporting period of not less than six years following the completion of the contract/project and, also, shall include completed operations coverage for a period of not less than six years following the completion of the project /contract.

4.6. Contract Amendment

Any changes or modifications to the terms of the contract shall only be valid when they have been reduced to writing and executed by the Contractor and UH.

4.7. Contractor Responsibilities

The Contractor shall have sole responsibility for the complete effort specified in the contract. Payment will be made only to the Contractor. The Contractor shall have sole responsibility for all payments due any subcontractor.

The Contractor is responsible for the professional quality, technical accuracy and timely completion and submission of all deliverables, services or commodities required to be provided under the contract. The Contractor shall, without additional compensation, correct or revise any errors, omissions, or other deficiencies in its deliverables and other services.

The approval of deliverables furnished under this contract shall not in any way relieve the Contractor of responsibility for the technical adequacy of its work. The review, approval, acceptance or payment for any of the services shall not be construed as a waiver of any rights that UH may have arising out of the Contractor's performance of this contract.

4.8. Substitution of Staff

If it becomes necessary for the Contractor to substitute any management, supervisory or key personnel, the Contractor will identify the substitute personnel and the work to be performed.

The Contractor must provide detailed justification documenting the necessity for the substitution. Résumés must be submitted evidencing that the individual(s) proposed as substitution(s) have qualifications and experience equal to or better than the individual(s) originally proposed or currently assigned.

The Contractor shall forward a request to substitute staff to the Executive Director, through University Hospital's Project Manager, for consideration and approval. No substitute personnel are authorized to begin work until the Contractor has received written approval to proceed from the Executive Director, through University Hospital's Project Manager

4.9. Substitution or Addition of Subcontractor(s)

If it becomes necessary for the Contractor to substitute and/or add a subcontractor, the Contractor will identify the proposed new subcontractor and the work to be performed. The Contractor must provide detailed justification documenting the necessity for the substitution or addition.

The Contractor must provide detailed résumés of the proposed subcontractor's management, supervisory and other key personnel that demonstrate knowledge ability and experience relevant to that part of the work, which the subcontractor is to undertake.

In the event a subcontractor is proposed as a substitution, the proposed subcontractor must equal or exceed the qualifications and experience of the subcontractor being replaced. In the event the subcontractor is proposed as an addition, the proposed subcontractor's qualifications and experience must equal or exceed that of a similar subcontractor proposed by the Contractor in its bid proposal.

The Contractor shall forward a request to substitute/add a subcontractor to the Executive Director, through University Hospital's Project Manager, for consideration and approval. No substitution or addition of a subcontractor is authorized until the Contractor has received written approval to proceed from the Executive Director, through University Hospital's Project Manager.

4.10. Ownership of Material

All data, technical information, materials gathered, oriented, developed, prepared, used or obtained in the performance of the contract, including, but not limited to, all reports, surveys, plans, charts, literature, brochures, mailings, recordings (video and/or audio), pictures, drawings, analyses, graphic representations, software computer programs and accompanying documentation and print-outs, notes and memoranda, written procedures and documents, regardless of the state of completion, which are prepared for or are a result of the services required under this contract shall be and remain the property of UH, and shall be delivered to UH upon 30 days' notice by UH.

With respect to software computer programs and/or source codes developed for UH, the work shall be considered "work for hire," i.e., UH, not the Contractor or subcontractor, shall have full and complete ownership of all software computer programs and/or source codes developed.

4.11. Data Confidentiality

All financial, statistical, personnel and/or technical data supplied by UH to the Contractor are confidential. The Contractor is required to use reasonable care to protect the confidentiality of such data. Any use, sale or offering of this data in any form by the Contractor, or any individual or entity in the Contractor's charge or employ, will be considered a violation of this contract and may result in contract termination and the Contractor's suspension or debarment from UH contracting. In addition, such conduct may be reported to the State Attorney General for possible criminal prosecution.

4.12. News Releases

The Contractor is not permitted to issue news releases pertaining to any aspect of the services being provided under this contract without prior written consent of the Executive Director.

4.13. Advertising

The Contractor shall not use UH's name, logos, images, or any data or results arising from this contract as a part of any commercial advertising without first obtaining the prior written consent of UH.

4.14. License and Permits

The Contractor shall obtain and maintain in full force and affect all required licenses, permits, and authorizations necessary to perform this contract. The Contractor shall supply UH with evidence of all such licenses, permits and authorizations. This evidence shall be submitted subsequent to the contract award. All costs associated with any such licenses, permits and authorizations shall have been included by the Contractor in its bid proposal.

4.15. Claims and Remedies

4.15.1. Claims

The following shall govern claims made by the Contractor regarding contract award rescission, contract interpretation, Contractor performance and/or suspension or termination.

As a matter of UH policy, final decisions concerning all disputes relating to contract award rescission, contract interpretation Contractor performance and/or reduction, suspension or termination are to be made in a manner consistent with N.J.A.C. 17:12-1.1, et seq. The Executive Director's final decision shall be final.

All claims asserted against UH by the Contractor shall be subject to the New Jersey Tort Claims Act, N.J.S.A. 59:1-1, et seq., and/or the New Jersey Contractual Liability Act, N.J.S.A. 59:13-1, et seq.

4.15.2. Remedies

Nothing in the contract shall be construed to be a waiver by UH of any warranty, expressed or implied, or any remedy at law or equity, except as specifically and expressly stated in writing executed by the Executive Director.

4.16. Form of Compensation and Payment

UH's payment terms are Net 45 days.

The Contractor must submit invoices to UH with supporting documentation evidencing that work for which payment is sought has been satisfactorily completed.

Invoices must reference the contract or purchase order number and must be in strict accordance with the firm, fixed prices submitted for each task or subtask on the RFP pricing sheet. When applicable, invoices should reference the appropriate RFP price sheet line number from the Contractor's bid proposal. All invoices must be approved by UH before payment will be authorized.

Invoices must also be submitted for any special projects, additional work or other items properly authorized and satisfactorily completed under the contract. Invoices shall be submitted according to the payment schedule agreed upon when the work was authorized and approved. Payment can only be made for work when it has received all required written approvals and has been satisfactorily completed.

4.17. Additional Work and/or Special Projects

The Contractor shall not begin performing any additional work or special projects without first obtaining written approval from the Executive Director, Supply Chain Management.

In the event that the need for additional work and/or a special project arises, UH will submit such a request to the Contractor in writing. The Contractor must present a written proposal to perform the additional work/special project to UH. The proposal should provide justification for the necessity of the additional work/special project. The relationship between the additional work/special project being requested and the work required by the Contractor under the base contract must be clearly established by the Contractor in its proposal for performing the additional work/special project. The Contractor's written proposal must provide a detailed description of the work to be performed, broken down by task and subtask. The proposal should contain details on the level of effort, including hours, labor categories, etc., necessary to complete the additional work.

The written proposal must detail the cost necessary to complete the additional work in a manner consistent with the contract. The written cost proposal must be based upon the hourly rates, unit costs or other cost elements submitted by the Contractor in the Contractor's original bid proposal submitted in response to this RFP. Whenever possible, the cost proposal should be a firm, fixed cost to perform the required work. The firm fixed price should specifically reference and be tied directly to costs submitted by the Contractor in its original bid proposal. A payment schedule, tied to successful completion of tasks and subtasks, must be included.

Upon receipt of the Contractor's written proposal, it shall be forwarded to the Executive Director for written approval. Complete documentation from the using agency, confirming the need for the additional work/special project, must be submitted.

No additional work and/or special project may commence without the Executive Director's written approval. In the event the Contractor proceeds with additional work and/or special projects without the written approval of the Executive Director, it shall be at the Contractor's sole risk. UH shall be under no obligation to pay for work done without the Executive Director's written approval.

4.18. Option to Reduce Scope of Work

UH has the option, in its sole discretion, to reduce the scope of work for any task or subtask called for under this contract. In such an event, the Executive Director shall provide advanced, written notice to the Contractor.

Upon receipt of such written notice, the Contractor will submit, within five (5) working days to the Executive Director, an itemization of the work effort already completed by task or subtasks. The Contractor shall be compensated for such work effort according to the applicable portions of its cost proposal.

4.19. Suspension of Work

The Executive Director may, for valid reason, issue a stop order directing the Contractor to suspend work under the contract for a specific time. The Contractor shall be paid until the effective date of the stop order. The Contractor shall resume work upon the date specified in the stop order or upon such other date as the Executive Director may thereafter direct in writing. The period of suspension shall be deemed added to the Contractor's approved schedule of performance. The Executive Director and the Contractor shall negotiate an equitable adjustment, if any, to the contract price.

4.20. Change in Law

Whenever an unforeseen change in applicable law or regulation affects the services that are the subject of this contract, the Contractor shall advise the Executive Director in writing and include in such written transmittal any estimated increase or decrease in the cost of its performance of the services as a result of such change in law or regulation. The Executive Director and the Contractor shall negotiate an equitable adjustment, if any, to the contract price.

4.21. Performance Bond

No performance bond is required under this contract.

4.22. Late Delivery and Liquidated Damages

Not applicable under this contract.

4.23. Retainage (Sample)

Not applicable under this contract.

4.24. Diverse and Local Subcontractor Utilization Report

University Hospital encourages all Contractors to subcontract with small, diverse and local firms. Upon contract award, the Contractor shall report all payments made to small, diverse and local business subcontractors to the UH Office of Supplier Diversity and Vendor Development. Reports must be submitted quarterly within 45 days of the close of each calendar quarter using the attached Diverse and Local Subcontractor Utilization Report.

4.25. Safety Data Sheets

Not applicable under this contract.

4.26. Contractor's Personnel

4.26.1. Direct Management of Personnel

The Contractor will be solely responsible for all direct management, supervision, and control of the work performed by the Contractor's personnel. The Contractor shall be responsible for determining the proper work methods and procedures to be used and for ensuring that the work is properly and safely undertaken and completed in a satisfactory manner.

4.26.2. Employees of the Contractor

All parties must clearly understand that all Contractor personnel provided by the Contractor or any of his subcontractors shall be considered employees of the Contractor or subcontractor. Under no circumstances shall these people be considered employees of University Hospital or as independent Contractors. Therefore, the Contractor and any of his subcontractors must provide all functions related to these personnel with respect to their classification as employees. These functions will include such services as salary, benefits and proper payroll deductions such as federal and state income taxes, disability and unemployment insurance, etc.

Contractor's personnel will be in uniform, clearly indicating name of firm and identifying their affiliation with the firm. In addition, personnel shall bear identification cards at all times with their name as well as the firm name listed on the card.

4.26.3. Employee Conduct

All Contractor personnel must observe all University Hospital's regulations in effect at the location where the work is being performed. While on University Hospital property, the Contractor's personnel shall be subject to oversight by University Hospital's Project Manager. Under no circumstances shall the Contractor's or any subcontractor's personnel be deemed employees of University Hospital. Contractor or subcontractor personnel shall not represent themselves to be employees of University Hospital.

Contractor's personnel will at all times make their best efforts to be responsive, polite, and cooperative when interacting with representatives of University Hospital or any other University Hospital employees.

The Contractor's personnel shall be required to work in a harmonious manner with University Hospital employees as well as outside contractors, if applicable. Nothing contained in this RFP shall be construed as granting the Contractor the sole right to supply personal or contractual services required by University Hospital.

The Contractor agrees that, upon request by University Hospital's Project Manager, the Contractor shall remove from the work crew any of its personnel who are, in the opinion of University Hospital, guilty of improper conduct or who are not qualified or needed to perform the work assigned to them. Examples of improper conduct include, but are not limited to, insobriety, sleeping on the job, insubordination, tardiness, or substandard performance.

University Hospital's Project Manager or their representative is empowered to request that the Contractor replace offending personnel immediately.

The University Hospital's Project Manager may require replacement and removal from the work crew any employee who is identified as a potential threat to the health, safety, security, general well-being, or operational mission of the facility and its population.

4.26.4. Criminal Background Check

In addition, in connection with the performance of work under this contract, the Contractor agrees not to employ any person undergoing sentence of imprisonment, except as provided under Public Law 89-176, September 10, 1965 (18 U.S.C. 4082)(c)(2) and Executive Order 11755, December 29, 1973.

All employees supplied by the Contractor may be required to have a criminal background check and/or be investigated during the term of this contract.

4.26.5. State Treasurer Review

The State Treasurer or his designee shall review the Disclosures submitted pursuant to this section, as well as any other pertinent information concerning the contributions or reports thereof by the intended awardee, prior to award, or during the term of the contract, by the Contractor. If the State Treasurer determines that any contribution or action by the Contractor constitutes a breach of contract that poses a conflict of interest in the awarding of the contract under this solicitation the State Treasurer shall disqualify the Business Entity from award of such contract.

4.27. New Jersey Election Law Enforcement Commission Requirement

The Contractor is advised of its responsibility to file an annual disclosure statement on political contributions with the New Jersey Election Law Enforcement Commission (ELEC), pursuant to N.J.S.A. 19:44A-20.13 (P.L. 2005, c.271, section 3) if the Contractor receives in excess of \$50,000 from a public entity in a calendar year. It is the Contractor's responsibility to determine if filing is necessary. Failure to so file can result in the imposition of financial penalties by ELEC. Additional information about this requirement is available from ELEC at 888-313-3532 or at www.elec.state.nj.us.

4.28. Federal and State Laws and Regulations Regarding Healthcare

University Hospital is committed to compliance with all federal and state laws and regulations regarding the delivery of healthcare, including but not limited to licensing, Stark and anti-kickback laws, Medicare regulations.

All services provided under this bid and the contract award under this bid must comply with all applicable laws. In addition, if a violation comes to the attention of either party, or any changes in the laws or regulations occurs which make the bid or contract entered into between the parties as a result of the bid, to be in violation of any applicable law, then the agreement shall be amended to address the violation or to comply with the change, or terminated if amending will not resolve the violation. University Hospital shall have the option to amend the contract resulting from the RFP in order to comply with all applicable local, State and Federal laws, rules and regulations.

5. PROPOSAL PREPARATION AND SUBMISSION INSTRUCTIONS

5.1. General

The bidder must follow instructions contained in this RFP and in the bid cover sheet in preparing and submitting its bid proposal. The bidder is advised to read thoroughly and to follow all instructions.

The information required to be submitted in response to this RFP has been determined to be essential in the bid evaluation and contract award process. Any qualifying statements made by the bidder to the RFP's requirements could result in a determination that the bidder's proposal is materially non-responsive. Each bidder is given wide latitude in the degree of detail it elects to offer or the extent to which plans, designs, systems, processes and procedures are revealed. Each bidder is cautioned, however, that insufficient detail may result in a determination that the bid proposal is materially non-responsive or, in the alternative, may result in a low technical score being given to the bid proposal.

The bidder is instructed to clearly identify any requirement of this RFP that the bidder cannot satisfy.

5.2. Proposal Delivery & Identification

In order to be considered, a bid proposal must arrive at the Department of Purchasing Services in accordance with the instructions in this RFP. Bidders submitting proposals are cautioned to allow adequate delivery time to ensure timely delivery of proposals. Late proposals are ineligible for consideration. **The exterior of all bid proposal packages must be labeled with the Request for Proposal identification number, final bid opening date and the buyer's name.**

5.3. Number of Bid Proposal Copies

Each bidder must submit one (1) complete original bid proposal, clearly marked as the "ORIGINAL" bid proposal in hard copy format (NO SPIRAL) and copy of original one in electronic format, such as USB/Flash Drive. Each bidder should also submit two (2) copy (NO SPIRAL BOUND), complete and exact copies of the original. The copies required are necessary in the evaluation of the bid. It is suggested that the bidder make and retain a complete copy of its bid proposal.

5.4. Proposal Form and Content

The proposal should follow the format indicated in the following Sections of this RFP. The bidder should limit their response no more than 50 pages to one volume, if at all possible, with that volume divided into four (4) sections as indicated below. Additional pages as appendices will not count against limit.

5.5. Section 1 – Forms

5.5.1 Ownership Disclosure Form

The bidder must complete the attached Ownership Disclosure Form. A complete Ownership Disclosure Form must be received prior to, or accompanying, the bid. Failure to do so will preclude the award of a contract.

5.5.2 Affirmative Action

The intended awardee must submit a copy of a New Jersey Certificate of Employee Information, or a copy of Federal Letter of Approval verifying it is operating under a federally approved or sanctioned Affirmative Action program. Intended awardee(s) not in possession of either a New Jersey Certificate of Employee Information or a Federal Letter

of Approval must complete the Affirmative Action Employee Information Report (AA-302) located on the web at http://www.nj.gov/treasury/purchase/forms/AA_%20Supplement.pdf. The requirement is a precondition of entering into a valid and binding contract.

5.5.3 Diverse and Local Subcontracting

The bidder should complete the attached Diversity Subcontractor Utilization Plan indicating the suppliers they plan to use and the estimated subcontracting amounts.

5.5.4 Bid Bond

Not applicable under this RFP.

5.5.5 Business Associate Agreement [For contracts that include the exchange of PHI]

The bidder should complete the attached Business Associate Agreement, involving the access to protected health information that is considered protected pursuant to federal, state and/or local laws and regulations in accordance with the privacy requirements of the “HIPAA” – Health Insurance Portability and Accountability Act of 1996. The requirement is a precondition of entering into a valid and binding contract.

https://www.uhnj.org/purchweb/documents/HIPPA_BAA.pdf

5.5.6 Business Registration Notice

In accordance with N.J.S.A. 52:32-44(b), a bidder and its named subcontractors must have a valid Business Registration Certificate (“BRC”) issued by the Department of Treasury, Division of Revenue prior to the award of a contract. To facilitate the proposal evaluation and contract award process, the bidder should submit a copy of its valid BRC and those of any named subcontractors with its proposal.

Any bidder, inclusive of any named subcontractors, who does not have a valid business registration at the time of the proposal submission opening or whose BRC was revoked prior to the submission of the proposal should proceed immediately to register its business or seek reinstatement of a revoked BRC. Bidders are cautioned that it may require a significant amount of time to secure the re-instatement of a revoked BRC. The process can require actions by both the Division of Revenue and the Division of Taxation. For this reason, a bidder’s early attention to this requirement is highly recommended. The bidder and its named subcontractors may register with the Division of Revenue, obtain a copy of an existing BRC or obtain information necessary to seek re-instatement of a revoked BRC online at: <http://www.state.nj.us/treasury/revenue/busregcert.shtml>.

A bidder otherwise identified by the Purchasing Services as a responsive and responsible bidder, inclusive of any named subcontractors, but that was not business registered at the time of submission of its proposal must be so registered and in possession of a valid BRC by a deadline to be specified in writing by the Purchasing Services. A bidder who fails to comply with this requirement by the deadline specified by the Purchasing Services will be deemed ineligible for contract award. Under any circumstance, the Purchasing Services will rely upon information available from computerized systems maintained by the State as a basis to verify independently compliance with the requirement for business registration.

5.5.7 Disclosure of Investment Activities in Iran Form

Pursuant to N.J.S.A. 52:32-58, the Bidder must submit the Disclosure of Investment Activities in Iran form to certify that neither the Bidder, nor one of its parents, subsidiaries, and/or affiliates (as defined in N.J.S.A. 52:32-56(e)(3)), is listed on the Department of the Treasury’s List of Persons or Entities Engaging in Prohibited Investment Activities in Iran and that neither the Bidder, nor one of its parents, subsidiaries, and/or affiliates, is involved in any of the investment activities set forth in N.J.S.A. 52:32-56(f). If the Bidder is unable to so certify, the Bidder shall provide a

detailed and precise description of such activities as directed on the form. A Bidder's failure to submit the completed and signed form will preclude the award of a contract to Bidder. See Section 9 of this RFP for the form. The List of Persons or Entities Engaging in Prohibited Investment Activities in Iran may be found here: <http://www.state.nj.us/treasury/purchase/pdf/Chapter25List.pdf>.

The form may be found here:

<http://www.nj.gov/treasury/purchase/forms/DisclosureofInvestmentActivitiesinIran.pdf>

5.5.9. Certification Regarding Prohibited Activities in Russia or Belarus

The Bidder should submit the Disclosure of Prohibited Activities in Russia / Belarus Form. Pursuant to P.L.2022, c. 3, a person or entity seeking to enter into or renew a contract for the provision of goods or services shall certify that it is not engaging in prohibited activities in Russia or Belarus, as defined by P.L.2002, c. 3, sec. 1(e). If the Bidder is unable to so certify, the Bidder shall provide a detailed and precise description of such activities. The form may be found here: <https://www.nj.gov/treasury/administration/pdf/DisclosureofProhibitedActivitesinRussiaBelarus.pdf>

A Bidder which is engaged in activities prohibited by P.L. 2022, c. 3 shall not be eligible for award of this contract. Further, a Contractor engaged in prohibited activities shall have 90 days to cease engaging in any prohibited activities and on or before the 90th day after this certification, shall provide an updated certification. If the Contractor does not provide the updated certification or at that time cannot certify on behalf of the entity that it is not engaged in prohibited activities, University Hospital shall not award the business entity any contracts, renew any contracts, and shall be required to terminate any contract(s) the business entity holds with the hospital that were issued on or after the effective date of P.L. 2022, c. 3, March 9, 2022.

5.6 Section 2 – Technical Proposal

In this Section, the bidder shall describe its approach and plans for accomplishing the work outlined in the Scope of Work Section, i.e., Section 3.0. The bidder must set forth its understanding of the requirements of this RFP and its ability to successfully complete the contract. This section of the proposal should contain at least the following information:

5.6.1 System Integrator Vendor Questionnaire

The Bidder must complete Attachment A, Vendor Questionnaire. This file (Item Master Management and Trading Partner Integration Vendor Questionnaire.xlsx) has four (4) tabs labeled as follows:

- A. Cover Page
- B. Mandatory Requirements
- C. General Information
- D. Technical Information
- E. SLA Response

Table of Contents (ToC) and Instructions will provide guidance on completing the document. Please include all supporting documentation in proposal response as an Appendix.

Bidders must refrain from adding lines or columns or modifying any of the questions. Failure to complete the questionnaire will result in the proposal being deemed non-responsive and thereby disqualify the proposal from evaluation. Submit an excel sheet with your digital copy and a PDF copy in your original response.

5.6.2 Work Plan

Bidder must define the roles, responsibilities and deliverables during the implementation phase in a detailed work plan. The work plan must outline sequentially and describe the elements and activities that would be undertaken in

completing the tasks; specify by name and job description, the role that would be assigned to perform said task; the hourly rate of each person; rate for task identified; and include a schedule for completing the tasks in terms of elapsed weeks from the commencement date. Include details regarding the timeline needed before system is capable of being “live” for use after contract execution.

5.6.3 Vendor Response to SLA

Bidder must complete the Vendor Response to SLA, Attachment C.

5.7 Section 3 – Organizational Support and Experience

The bidder should include information relating to its organization, personnel, and experience, including, but not limited to, references, together with contact names and telephone numbers, evidencing the bidder’s qualifications and capabilities to perform the services required by this RFP.

5.7.1 Diversity Status of Bidder

- 5.7.1.1 The bidder should provide evidence of its certification as a small, minority, women, LGBT, or veteran owned business entity, if applicable.
- 5.7.1.2 The bidder should provide evidence of its status as a local (Newark or Primary Service Area) business enterprise, if applicable.
- 5.7.1.3 The bidder should provide the percentage of its total contracting and procurement spend for the prior year which was spent with small, women, minority and veteran-owned business enterprises, and with local business enterprises.
- 5.7.1.4 The bidder should indicate the percentage Bidder will subcontract, if any, with certified small, women, minority and veteran-owned business enterprises and with local business enterprises should it be awarded this contract. The bidder should complete the attached Diversity Subcontractor Utilization Plan indicating the suppliers it plans to use and the estimated subcontracting amounts.

5.7.2 Subcontractor(s)

- 5.7.2.1 Should the bidder propose to utilize a subcontractor(s) to fulfill any of its obligations, the bidder shall be responsible for the subcontractor’s(s): (a) performance; (b) compliance with all of the terms and conditions of the contract; and, (c) compliance with the requirements of all applicable laws.
- 5.7.2.2 The bidder should provide detailed description of services to be provided by each subcontractor, referencing the applicable Section or subsection of this RFP.
- 5.7.2.3 The bidder should provide detailed résumés for each subcontractor’s management supervisory and other key personnel that demonstrate knowledge, ability and experience relevant to that part of the work, which the subcontractor is designated to perform.
- 5.7.2.4 The bidder should provide documented experience demonstrating that each subcontractor has successfully performed work on contracts of a similar size and scope to the work that the subcontractor is designated to perform in the bidder’s proposal.

5.8 Diversity Subcontractor(s)

5.8.1 UH encourages all suppliers to make good faith efforts to seek out and provide contracting opportunities to and document the use of second tier diverse and local suppliers.

5.8.2 Bidders which intend to subcontract should submit with their proposal the attached Diversity Sub-Contractor Utilization Plan listing the subcontractors proposed and the expected subcontract value.

5.8.3 The bidder should include in its proposal detailed descriptions of services to be provided by each subcontractor, referencing the applicable Section or subsection of this RFP.

5.9 Section 4- Cost Proposal

Bidders must submit their cost proposal in accordance with the Price Sheet(s) included in this RFP as Section 8.0 with submission of Attachment B.

5.9.1 Failure to submit all information required will result in your bid being considered non-responsive. Each bidder is requested to hold its prices firm for a minimum of one hundred twenty (120) days so that an award can be made.

5.9.2 Each bidder should also provide a comprehensive listing of all labor categories that may be used to perform additional work and/or special projects or according to the additional work and/or special project clause(s) of this RFP. Loaded hourly rates are to be submitted for all labor categories that the bidder anticipates may be required to perform additional work and/or special projects.

5.9.3 Each bidder may also submit any additional price or cost information that the bidder feels may be required to perform any additional work and/or special projects required by this RFP.

ONLY price and costing information provided by the bidder in its original bid proposal submitted in response to this RFP may later be used for additional work and/or special projects to be paid against the contract resulting from this RFP.

5.9.4 Failure to submit signed Section 8.0 Cost Proposal will result in your bid being considered non-responsive.

6 PROPOSAL EVALUATION AND CONTRACT AWARD

6.1 Proposal Evaluation Committee

Proposals may be evaluated by an Evaluation Committee composed of members of affected departments together with representative(s) from the Department of Purchasing Services. Representatives from other governmental agencies may also serve on the Evaluation Committee. On occasion, the Evaluation Committee may choose to make use of the expertise of an outside consultant in an advisory role.

6.2 Oral Presentation and/or Clarification of Bids

A bidder may be required to give an oral presentation to the Evaluation Committee concerning its bid proposal. The Evaluation Committee may also require a bidder to submit written responses to questions regarding its bid.

The purpose of such communication with a bidder, either through an oral presentation or a letter of clarification, is to provide an opportunity for the bidder to clarify or elaborate on its bid. The original bid, as submitted, however, cannot be supplemented, changed, or corrected in any way during the evaluation process. No comments regarding other bids are permitted. Bidders may not attend presentations made by their competitors.

It is within the Evaluation Committee's discretion whether to require a bidder to give an oral presentation or require a bidder to submit written responses to questions regarding its bid. Action by the Evaluation Committee in this regard should not be construed to imply acceptance or rejection of a bid. The Purchasing Services' buyer is the sole point of contact regarding any request for an oral presentation or written clarification.

6.3 Evaluation Criteria

The following evaluation criteria categories, not necessarily listed in order of significance, will be used to evaluate bid proposals received in response to this RFP. The evaluation criteria categories may be used to develop more detailed evaluation criteria to be used in the evaluation process.

6.3.1 The bidder's general approach and plans to meet the requirements of this RFP.

6.3.2 The bidder's detailed approach and plans to perform the services required by the Scope of Work Section of this RFP.

6.3.3 The bidder's documented experience in successfully completing contracts of a similar size and scope of those required by this RFP.

6.3.4 The bidder's status as a certified small, minority-owned, women-owned, veteran-owned, LGBT-owned, or Local Business Enterprise, and its declared intent to engage diverse and local subcontractors.

6.3.5 The overall ability of the bidder to mobilize, undertake and successfully complete the contract. This judgment will include, but not be limited to, the following factors: the number and qualifications of management, supervisory and other staff proposed by the bidder to complete the contract, the availability and commitment to the contract of the bidder's management, supervisory and other staff proposed and the bidder's contract management plan, including the bidder's contract organizational chart.

6.3.6 The bidder's cost proposal.

6.4 University Hospital's Right to Consider Additional Information

6.4.1 The Executive Director may obtain any information determined to be appropriate regarding the ability of the bidder to supply and/or render the service required by this RFP.

6.4.2 The Executive Director may consider such other factors that, in the opinion of the Executive Director, are important in evaluating the bidder's proposal and awarding contracts as determined to be in the best interest of University Hospital.

6.4.3 University Hospital reserves the right to request all bidders to explain the method used to arrive at any or all cost or pricing figures.

6.4.4 When making the contract award decision, University Hospital may consider evidence of formal or other complaints against any bidder(s) by University Hospital for contracts held in the past or present by the bidder.

6.4.5 University Hospital reserves the right to check the bidder's financial capacity and ability to successfully undertake and provide the services required by this RFP by any means deemed appropriate.

6.4.6 University Hospital reserves the right to conduct site inspections of any facility(s) serviced by the bidder(s) to assist in judging the bidder's ability to provide the services required by this RFP. This applies to all facilities serviced by the bidder or any sub-contractor to the bidder. This right extends to all facilities of which University Hospital is aware, or about which it becomes aware, that the bidder is servicing, whether or not the facility is listed in the bidder's proposal.

6.5 RIGHT TO WAIVE

The Executive Director reserves the right to waive minor irregularities. The Executive Director also reserves the right to waive a requirement provided that:

- (1) The requirement is not mandated by law;
- (2) All of the otherwise responsive proposals failed to meet the mandatory requirement; and
- (3) In the sole discretion of the Executive Director, the failure to comply with the mandatory requirement does not materially affect the procurement or UH's interests associated with the procurement.

6.6 NEGOTIATION AND BEST AND FINAL OFFER (BAFO)

After evaluating bid proposals, the evaluation committee may enter into negotiations with each bidder in the competitive range, unless there are too many highly rated proposals to evaluate efficiently. In this situation, UH may limit the competitive range to the number of proposals that will permit efficient competition among the most highly rated proposals. The primary purpose of negotiations is to maximize UH's ability to get the best value, based on the requirements and evaluation criteria set forth in the RFP. Negotiations may involve the identification of significant proposal weaknesses, ambiguities and other deficiencies that could limit a bidder's award potential, including price. More rounds of negotiations may be held with one bidder in the competitive range than with another. Negotiations will be structured to safeguard information and ensure that all bidders in the competitive range are treated fairly. When the evaluation committee determines to conclude negotiations, all bidders in the competitive range will be so notified and advised of the time and place for submission of best and final offers. The best and final offer can modify any aspect of the bid proposal, provided mandatory RFP requirements are satisfied and further provided that the revised price proposal is not higher cost than the original price proposal. Any revised price proposal that is higher in cost than the original price proposal will be rejected as non-responsive.

Evaluation of the best and final offers will be on the basis of price and the evaluation criteria set forth in the RFP. If, after review of the best and final offers, clarification is required, it may be sought from the bidders. If further negotiation is desired after evaluation of the revised proposals, it will be followed by another BAFO opportunity.

UH reserves the right to reassess the competitive range before proceeding with a subsequent round of negotiations and BAFO submissions and to remove from the competitive range any proposal that is no longer considered to be a

leading contender for award. After evaluation of the final BAFO submissions, the evaluation committee will recommend to the Executive Director for award the responsible bidder(s) whose proposal(s), conforming to the RFP, is most advantageous to UH, price and other factors considered. The Executive Director may accept, reject or modify the recommendation of the Evaluation Committee. The Executive Director may negotiate further cost reductions with the selected bidder.

Negotiations will only be conducted in those circumstances where they are deemed by UH to be in UH's best interests and to maximize UH's ability to get the best value. Therefore, bidders are advised to submit their best technical and price proposals in response to this RFP, because UH may, after evaluation, make a contract award based on the content of these initial submissions, without further negotiation with any bidder.

All contacts, records of initial evaluations, any correspondence with bidders related to any request for clarification, negotiation or BAFO, any revised technical and/or payment proposals, the Evaluation Committee Report and the Award Recommendation, will remain confidential until a Notice of Intent to Award a contract is issued.

NOTE: If UH contemplates negotiation, proposal prices will not be publicly read at the proposal submission opening. Only the name and address of each bidder will be publicly announced at the proposal submission opening.

6.7 Contract Award

The contract shall be awarded with reasonable promptness by written notice to that responsible bidder whose bid, conforming to the invitation for bids, will be most advantageous to UH, price and other factors considered. Any or all bids may be rejected when the Executive Director determines that it is in the public interest to do so.

6.8 Bidder's Option to Challenge the Bid Specification or Contract Award

Except in cases of emergency, under current UH policy, a bidder may challenge the bid specification or a proposed contract award.

For a protest of bid specification, the challenge must be received by the UH buyer of record with a copy to the Executive Director of Supply Chain Management ("Executive Director") no later than 5:00PM EPT on the second business day after the close of the question and answer period. Any protest of bid received after the deadline shall be rejected as untimely, and the Hospital shall proceed to evaluate all proposals timely received under this RFP.

A bidder's protest of award must be submitted to the buyer of record with a copy to the Executive Director within ten (10) business days of receipt of notice to the bidder that it did not receive a contract award for its submitted bid proposal or notice that an award has been made to another bidder. The protest period may be shortened by the Executive Director of Supply Chain Management. If the protest period is shortened or a protest period is not authorized due to emergency, all bidders will receive notice of the shortened protest period or emergency in the notice sent to bidders on the award of the contract.

Notices of contract award under this section may be faxed, e-mailed, sent by regular mail or by any other means, excluding telephonic communication, conducive to transmitting the notice. If notice is sent by regular mail, the recipient is deemed to have received the notice three (3) days after mailing.

If a bidder files a timely protest of bid or award under this section, the bidder must set forth in writing with specificity the basis of the protest. At the time of the protest filing, the bidder must also submit all documentation supporting the basis of the protest. Failure to comply with these requirements may lead to rejection of the protest and UH award of the contract.

A timely filed protest will be reviewed and addressed with reasonable promptness. If deemed necessary by the Executive Director, a hearing may be held on the merits of the protest. In all cases, the Executive Director will notify the bidder of any process or filing requirements and the final determination thereof.

7 BIDDER’S RESPONSE OF “NO” TO SCOPE OF WORK REQUIREMENTS

The bidder should provide information for which a “NO” answer is given to any of the Scope of Work Requirements in Section 3.0. The information should include a thorough explanation for not meeting the requirement and alternative which may substitute the requirement.

3.1 _____

3.2 _____

3.3 _____

3.4 _____

3.5 _____

3.6 _____

3.7 _____

3.8 _____

3.9 _____

3.10 _____

3.11 _____

3.12 _____

3.13 _____

8 **PRICE SHEET AND SUPPORTING DETAIL**

UH-P26-008: Item Master Management & Trading Partner Integration for Oracle Fusion

DO NOT DEVIATE FROM THE PRICE SHEET, IT MAY CAUSE DISQUALIFICATION.

The proposed pricing **MUST** remain firm for the entire contract period including any optional 4th and 5th year extensions.

Refer to Attachment B for fully loaded excel file with formulas. Do not make changes to the formulas. Failure to submit all information required will result in your bid being considered non-responsive

Assumptions & Commercial Inputs

<u>Commercial Inputs</u>			
<u>Assumption</u>	<u>Value</u>	<u>Units</u>	<u>Notes</u>
Active items baseline	33,000	items	RFP background notes: UH has been live for 18 months & originally started with 19,900 lines
New supplier / trading partners in Year 1		count	User input
New supplier / trading partners in Year 2		count	User input
New supplier / trading partners in Year 3		count	User input
EDI transactions in Year 1		count	User input
EDI transactions in Year 2		count	User input
EDI transactions in Year 3		count	User input
Implementation contingency	-	\$	Optional internal planning only

RFP Pricing Reminders

- Support and maintenance pricing should be included in the price proposal.
- Loaded hourly rates should be provided for any change requests or additional work.
- Optional years 4 and 5 are shown separately in the summary and can be priced using the same unit rates.

8.1 Implementation Fee Schedule: (use the following format)

Implementation Fee Schedule							
One-Time Implementation Pricing							
Phase	Key Deliverable	Fixed Fee	Expense / Pass-Through	Contingency	Phase Total	Milestone	Notes
Project Initiation & Planning	Project charter, governance, workplan			-	-	- Kickoff complete	
Item Master Assessment & Cleansing	Data audit, standardization, enrichment			-	-	- Data scope approved	
Data Migration & Validation	Migration files, reconciliation, conversion support			-	-	- Mock conversion complete	
Integration Design & Build	Oracle Fusion + trading partner interfaces			-	-	- Interfaces tested	
Testing & UAT Support	SIT, UAT, parallel test support			-	-	- UAT sign-off	
Training & OCM	Training materials, communications, adoption support			-	-	- Training complete	
Go-Live & Stabilization	Cutover support, hypercare, issue resolution			-	-	- Go-live accepted	
TOTAL IMPLEMENTATION					-		Used in Pricing Summary and Payment Milestones

8.2 Loaded Hourly Rate Cards for 4.17 (Additional Work and/or Special Projects):

Bidders are to submit in the bidding price line below the amount UH will be charged for any required services in section of the RFP identified above. Quotations will be requested from Contractors, when necessary, as requirements arise in accordance with 4.17. No Offshore Staffing Permitted. If you require additional lines, please use the format below.

Loaded Hourly Rate Card							
Resource Rates							
Role	Named Resource (Optional)	Hourly Rate	Impl. Hours	Impl. Cost	Change Hours	Change Cost	Notes
Executive Sponsor				-		-	
Program / Project Manager				-		-	
Item Master Governance Lead				-		-	
Data Cleansing / Enrichment Specialist				-		-	
EDI / Integration Lead				-		-	
Technical Developer / Analyst				-		-	
Testing Lead				-		-	
OCM / Training Lead				-		-	
Support Analyst				-		-	
TOTAL			-	-	-	-	

***If you require additional lines, please use the format above.**

8.3 Payment Milestones

Payment Milestones					
Implementation Payment Schedule					
Milestone	% of Implementation	Payment Amount	Trigger	Status	Notes
Project Kickoff / Charter Approval	10.0%		- Approved project plan		
Data Cleansing / Design Complete	20.0%		- Approved design and cleansed baseline		
Integrations Built & Tested	20.0%		- Interface build complete		
UAT Sign-Off	20.0%		- Testing accepted		
Go-Live	20.0%		- Production deployment		
Stabilization Complete / Final Acceptance	10.0%		- Hypercare exit		
TOTAL	100.0%	-		Target	Percent should equal 100%

UH-P26-008: Item Master Management & Trading Partner Integration for Oracle Fusion

Bidder's Name:

Contact Person Name and Title:

Telephone & Fax No.:

E-mail Address:

Signature:

Date Signed:

9 **REQUIRED FORMS**

9.1 The following forms **MUST** be submitted with the bidder's proposal, or the proposal will be found non- responsive:

- Completed Original – **MUST BE COMPLETED & SIGNED** - RFP Cover Sheet
- Section 3.0 Scope of Work with Yes or No checked and accompanying explanation for any areas checked "No".
- Completed Ownership Disclosure Form –**MUST BE COMPLETED and SIGNED**- Attached
- Technical Response to Section 5.6, 5.7, Attachment A (Vendor Questionnaire), Attachment C (Vendor Response to SLA), and if applicable, 7.
- W-9 Form - <https://www.irs.gov/pub/irs-pdf/fw9.pdf>
- Section 8- Price sheet **MUST be signed** and Attachment B completed in its entirety.

9.2 The following forms are required before Contract award and may be submitted with bidder's proposal:

- Standard Terms & Conditions - **MUST be signed**
- Business Registration Certificate (BRC)- <http://www.state.nj.us/treasury/revenue/busregcert.shtml>
- Business Associate Agreement: MUST be signed-Attached
- Certificate of Liability Insurance
- Disclosure of Investment Activities in Iran Form:
<http://www.nj.gov/treasury/purchase/forms/DisclosureofInvestmentActivitiesinIran.pdf>
- Certification Regarding Prohibited Activities in Russia or Belarus:
<https://www.nj.gov/treasury/administration/pdf/DisclosureofProhibitedActivitesinRussiaBelarus.pdf>
- Certificate of Employee Information Report:
https://www.nj.gov/treasury/contract_compliance/documents/pdf/forms/aa302/instructions.pdf

ATTACHMENT 1 – KPI AND SLA TABLE

Category	Metric	Definition	Target / SLA	Measurement Frequency
Data Quality	Item Master Accuracy	% of records validated as correct (manufacturer, catalog #, UOM, pricing, attributes)	≥ 98%	Monthly
	Data Completeness	% of required fields populated per UH standards	≥ 99%	Monthly
	Duplicate Rate	% of duplicate items in item master	≤ 0.5%	Monthly
	Data Standardization	% compliance with UH naming and classification standards	≥ 98%	Monthly
External Data Feeds	Feed Processing Timeliness	Time to process and apply external data updates	≤ 24 hours from receipt	Daily
	Feed Accuracy	% of external feed records correctly ingested without error	≥ 99%	Daily
	Feed Failure Resolution	Time to resolve failed or rejected data feeds	≤ 1 business day	Per incident
EDI / Transactions	EDI Transaction Success Rate	% of transactions processed without error (PO, ASN, Invoice, etc.)	≥ 98%	Monthly
	Invoice Match Exception Rate	% of invoices failing 3-way match due to item master issues	≤ 2%	Monthly
	Trading Partner Onboarding	Time to onboard new supplier for EDI transactions	≤ 10 business days	Per onboarding
Item Lifecycle Management	New Item Creation Time	Time from request to approved item creation	≤ 2 business days	Per request
	Item Update Turnaround	Time to process item changes (price, UOM, attributes)	≤ 1 business day	Per request
	Item Deactivation Accuracy	% of inactive/obsolete items properly flagged	≥ 99%	Monthly

Category	Metric	Definition	Target / SLA	Measurement Frequency
Maintenance & Monitoring	Market Update Responsiveness	Time to reflect pricing/catalog/UOM changes	≤ 3 business days	Ongoing
	Data Sync Latency	Time lag between source and UH system updates	≤ 24 hours	Daily
Recall Management	Recall Identification Time	Time to identify impacted items after notice	≤ 4 hours	Per incident
	Recall Traceability	% of recalled items traceable (lot/serial/location)	≥ 99%	Per incident
	Recall Response Coordination	Time to notify UH stakeholders	≤ 4 hours	Per incident
Support & Operations	Critical Issue Response	Initial response time for critical issues	≤ 1 hour	Per incident
	Critical Issue Resolution	Resolution time for critical issues	≤ 4 hours	Per incident
	Non-Critical Issue Resolution	Resolution time for standard issues	≤ 2 business days	Per incident
	Data Feed Issue Response	Response to feed failures or discrepancies	≤ 2 hours	Per incident
Reporting & Governance	Reporting Timeliness	Delivery of standard reports	100% on schedule	Monthly
	KPI Reporting Accuracy	Accuracy of submitted KPI reports	≥ 99%	Monthly
	Business Reviews	Conduct monthly/quarterly reviews	100% compliance	Monthly/Quarterly

ATTACHMENT 2

UH Data Safeguard Standards

1. **Defined Terms.** The term "UH Data" refers to UH's information as well as other entity information in the possession of UH that is processed, stored, or transmitted by a computer. UH Data includes all data that is generated by Successful Respondent in performance of a contract with UH. The term "UH Information System" refers to those devices, software, networks, and related infrastructure that UH owns, operates, or has obtained for use to conduct UH business. Devices include, but are not limited to, UH-owned or managed storage, processing, and communications devices, as well as personally owned devices.
2. **Access to UH Data.** Successful Respondent represents and warrants that it will implement, maintain, and use appropriate administrative, technical, and physical safeguards to preserve the confidentiality, integrity, and availability of UH Data. Successful Respondent will not collect, access, use, disclose, or retain UH Data other than as necessary to perform the services specified in a contract resulting from this solicitation or as otherwise authorized in writing by UH. Successful Respondent will restrict access to UH Data to only those personnel who must have the information on a "need to know" basis. Successful Respondent will not use UH Data, or any information derived from UH Data, for its own benefit or the benefit of any other person or entity. Successful Respondent will not share UH Data with its parent company or other affiliate without UH's express written consent.
3. **Remote Access to UH Information Systems.** In accordance with UH's security protocols, UH shall not permit remote access by Successful Respondent to an UH information System prior to Successful Respondent's acceptance of the UH Remote Access Terms and Conditions and UH's approval of Successful Respondent's Remote Access Request form. Successful respondent will abide by rules and regulations of UH's Business Associate Agreement (BAA) and Data Use Agreement (DUA). Successful Respondent may contact the UH Contract Manager for the applicable forms. Successful Respondent shall only access UH Information Systems using UH-approved remote access technologies, processes, and procedures. Successful Respondent's point of access to an UH Information System shall be within the continental United States.
4. **Location of UH Data.** Successful Respondent shall ensure that UH Data (i.e., primary and backup) remains, always, within the continental United States. Successful Respondent shall receive, process, transmit, and store all UH Data within the continental United States. Successful Respondent's point of access to UH Data shall be within the continental United States.

Encryption Standards

1. Successful Respondent shall encrypt UH Data in transit and at rest. Data in transit means data is moving via email, in applications, or through browsers and other web connections. Data at rest (including data backups) means data is stored in databases, the cloud, removable media, or mobile devices.
2. Successful Respondent shall utilize encryption standards that are FIPS 140-2 compliant or, upon the written approval of UH's Chief Information Officer, shall meet the intent of the standards as described in FIPS 140-2.
3. The minimum cryptographic algorithm used by Successful Respondent must be Advanced Encryption Standard (AES) 128 or higher (256 AES is preferred).
4. Successful Respondent shall encrypt UH Data transmitted over a public or private network. UH approved data encryption transmission protocols include the following: (1) SFTP (FTP over SSH), (2) FTPS (FTP over SSL), (3) HTTPS (HTTP over SSL), and (4) virtual private network.

5. Successful respondent shall follow all Health Insurance Portability and Accountability Act (HIPAA) standard for sensitive patient data protection. If successful respondent deals with protected health information (PHI) it must have physical, network, and process security measures in place and follow them to ensure HIPAA Compliance.

Information Security Plan and Auditable Information Security Framework

1. Successful Respondent will develop, implement, and maintain a comprehensive written Information Security Plan that contains administrative, technical, and physical safeguards designed to: (i) ensure the confidentiality, integrity and availability of UH Data; (ii) protect against unauthorized access to or use of UH Data; and (iii) comply with all applicable legal and regulatory requirements for data protection. Successful Respondent shall secure its own and its third-party service providers' systems (e.g., IT service provider, Cloud Service Provider) in a manner consistent with an auditable information security framework e.g., NIST, ISO 27001. UH reserves the right to immediately terminate any access to an UH Information System.

OWNERSHIP DISCLOSURE FORM

Name of Firm: _____

INSTRUCTIONS: Provide below the names, home addresses, dates of birth, offices held and any ownership interest of all officers of the firm named above. If addition space is necessary, provide on an attached sheet.

Name	Home Address	Date of Birth	Office Held	Ownership Interest
_____	_____	_____	_____	_____

INSTRUCTIONS: Provide below the names, home addresses, dates of birth, and ownership interest of all individuals not listed above, and any partnerships, corporations and any other owner having a 10% or greater interest in the firm named above. If a listed owner is a corporation or partnership, provide below the same information for the holders of 10% or more interest in that corporation or partnership. If additional space is necessary, provide that information on any attached sheet. If there are no owners with 10% or more interest in your firm, enter "None" below. Complete the certification at the bottom of this form. If this form has previously been submitted to UH, Purchasing Department in connection with another bid, indicate changes, if any, where appropriate, and complete the certification below.

Name	Home Address	Date of Birth	Office Held	Ownership Interest
_____	_____	_____	_____	_____

COMPLETE ALL QUESTIONS BELOW

Within the past five years has another company or corporation had a 10% or greater interest in the firm identified above? (If yes complete and attach a separate disclosure form reflecting previous ownership interests.) Yes _____ No _____

Has any person listed in this form or its attachments ever been arrested, charged, indicted, plead guilty or been convicted in a criminal or disorderly persons matter by the State of New Jersey, any other Political subdivision state or the U.S. Government? (If yes, attach a detailed explanation for each instance.) Yes _____ No _____

Has any person or entity listed in this form or its attachments ever been excluded suspended, debarred or otherwise declared ineligible by any agency of government from bidding or Contracting to provide services, labor, material or supplies? (If yes, attach a detailed explanation for each instance.) Yes _____ No _____

Are there now any criminal matters, suspension or debarment proceedings pending in which the firm and/or its officers and/or managers are involved? (If yes, attach a detailed explanation for each instance.) Yes _____ No _____

Has any federal, state or local license, permit or other similar authorization, necessary to perform the work applied for herein and held or applied for by any person or entity listed in this form, been suspended or revoked, or been the subject of any pending proceedings specifically seeking or litigating the issue of suspension or revocation? (If yes to any part of this question, attach a detailed explanation for each instance.) Yes _____ No _____

CERTIFICATION: I, being duly sworn upon my oath, hereby represent and state that the foregoing information and any attachments thereto to the best of my knowledge are true and complete. I acknowledge that the State of New Jersey is relying on the information contained herein and thereby acknowledge that I am under a continuing obligation from the date of this certification through the completion of any contracts with the State to notify the State in writing of any changes to the answers or information contained herein. I acknowledge that I am aware that it is a criminal offense to make a false statement or misrepresentation, and if I do so, I recognize that I am subject to criminal prosecution under the law and that it will also constitute a material breach of my agreement(s) with the State of New Jersey and that the State at its option, may declare any contract(s) resulting from this certification void and unenforceable.

I, being duly authorized, certify that the information supplied above, including all attached pages, is complete and correct to the best of my knowledge. I certify that all of the foregoing statements made by me are true. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment. (Print or Type)

Date: _____	_____ Signature
	_____ Name
	_____ Title

FEIN # _____

University Hospital Supplier Diversity and Vendor Development Program

It is the policy of University Hospital to encourage and afford contracting opportunities for diverse and local suppliers while ensuring that it receives the highest quality products and services at the most economical cost. The UH Supplier Diversity Program is founded on the principles of fair and equitable business practices and social responsibility to the communities we serve. We are committed to be a valuable, contributing member of those communities. Supplier diversity is an important part of that commitment.

A wide range of suppliers is needed to support University Hospital's clinical and business operations. Through our Supplier Diversity Program, we are dedicated to diversifying our supplier base to include minority-owned, women-owned, veteran-owned, LGBT-Owned, small, and local businesses wherever possible. We actively seek to include diverse suppliers in bidding opportunities wherever possible.

A Diverse Supplier is a University Hospital supplier certified as one of the following:

- **Minority Business Enterprise (MBE)** - An enterprise presently located in the United States or its trust territories that is at least 51% owned by African Americans, Hispanic Americans, Native Americans, Asian Indian Americans or Asian Pacific Americans. Individual(s) must be involved in the day-to-day management of the business. Certification is provided by the following organizations: National Minority Supplier Development Council (NMSDC); National Minority Business Council (NMBC); NY/NJ Minority Supplier Development Council; US Pan Asian Chamber of Commerce (USPAACC).
- **Woman Business Enterprise (WBE)** - An enterprise presently located in the United States or its trust territories that is at least 51% owned, controlled, and operated by a woman or women of US citizenship. Individual(s) must be involved in the day-to-day management of the business. Certification is provided by the Women's Business Enterprise National Council (WBENC).
- **Veteran Business Enterprise (VBE)** – An enterprise presently located in the United States or its trust territories that is at least 51% owned, controlled, and operated by one or more individuals who have performed active service in one of the United States armed services and have been honorably discharged. Individual(s) must be involved in the day-to-day management of the business. Certification is provided by the following organizations: US Department of Veteran Affairs (VA); National Veteran Business Development Council (NVBDC).
- **LGBT Business Enterprise (LGBTE)** - An enterprise presently located in the United States or its trust territories that is at least 51% owned, controlled, and operated by a gay, lesbian, bisexual or transsexual individual of US citizenship. Individual(s) must be involved in the day-to-day management of the business. Certification is provided by the National LGBT Chamber of Commerce (NGLCC)
- **Small Business Enterprise (SBE)** - A small business (as defined pursuant to Section 3 of the Small Business Act) presently located in the United States or its trust territories. The Small Business Act states that a small business concern is "one that is independently owned and operated, and which is not dominant in its field of operation." The law also states that in determining what constitutes a small business, the definition will vary from industry to industry to reflect industry differences accurately. Verification is provided by The Small Business Administration, and New Jersey Department of Treasury, Division of Revenue, which maintains the NJSAVI Database.
- **Local Business Enterprise (LBE)** - An enterprise with its headquarters or significant business operations physically located in Newark, NJ or University Hospital's Primary Service Area, which includes, in addition to Newark, Belleville, Bloomfield, East Orange, Elizabeth, Harrison, Hillside, Kearny, North Arlington, Nutley, Orange, Union and West Orange, NJ.

University Hospital has established a goal of awarding 15% of all contracts to diverse and local suppliers. To that end, UH will:

- Actively seek out and solicit the participation of diverse and local suppliers in all procurement activities where feasible.
- Prequalify and register diverse and local suppliers through the UH Supplier Diversity Portal.
- Provide vendor education and training opportunities to help diverse and local suppliers better understand how to meet the hospital's business needs.
- Seek to remove barriers to diverse and local suppliers, and appropriately weigh diversity in evaluating bidder proposals.
- Challenge our suppliers to make good faith efforts to seek out and provide contracting opportunities to and document the use of second tier diverse and local suppliers.